

THE LAW OF TORTS.

SIKIA

LOW

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Week 1: THE HISTORY OF TORTS.

A tort is defined by Winfield and Jolowicz as a civil wrong for which the remedy is a common law action for un-liquidated damages and which is not exclusively the breach of contract trust or any other equitable obligations. The development of the law is closely related to the development of society. In society people organize themselves in different ways. They have institutions that assist in the running of the society.

GENTILE SOCIETY.

This society was organized on the basis of clans and produced on a collective basis. This was in response to the fact that they had limited skills and instruments of production so they had to work together to sustain themselves. They lived in a natural economy as opposed to a market economy. Today human beings have developed to a level when they can produce their own means of production and can manipulate nature to their advantage. The stages of development were savagery where they had no skills at all and just appropriated nature to survive. The middle stage of savagery is marked by the discovery of fire, then the club and spear. In the upper stage of savagery, they made bows and arrows out of polished stone and hunting became established. In the lower stage of barbarism there was pottery, weaving and the domestication of animals/agriculture. In the middle stage there was introduction of bronze tools and weapons. It was then that division of labor began. In the upper stage of barbarism there was iron smelting and this led to large-scale agriculture. It also increased the effectiveness in war. The final stage was civilization.

At each of these stages productivity of labor developed and there was development of skills. Because of the collectiveness of the production political organization also became collectivist. It was a classless society based on kinship ties. In many societies the clans were totemic. They were governed by taboos as a means of social regulation. They were cohesive and conflict was minimal. They were democratic and had no laws because they had no government to institute the laws. Many of the civil wrongs that today make up the corpus of tort law were nonexistent.

SLAVE SOCIETY;

These were differentiated in classes and were organized in states. When people became

able to produce in surplus it became possible to sustain a class of persons who were not producing anything. The barbaric stage then fades in to civilization. They had leisure and time to think which led to discoveries like writing. It was the persons who learnt to write who became philosophers. As a result of the fact that they were not engaged in production

their philosophies were idealist. They were aimed at protecting their status of life. They regarded mind and spirit as primary and matter and life as secondary. To them thinking was primary and labor was secondary. This resulted in classes as the philosophers started appropriating the wealth of those who produced under slavery. Those who owned property became the minority with no way of directly asserting their will on the majority. The only way they could do this was through the state as an instrument of coercion. It is important to note that not all societies were slave societies, in places like Africa there was a mixture. The mode of production was slave labor which was owned by the minority in society. They had private means of production like land owned by the minority free men on which the slaves worked. The state had a number of instruments like the prisons to impose the will of the minority on the majority. Law developed as an aspect of the state to sanctify the unfair relations. It bound the slaves to work for the masters. The state was not sufficient so they developed ideology to back it up. This was in the sense of false consciousness. It was against this background that the philosophies thrived. This ideology later achieved social prejudice as a way of maintaining the supremacy of the minority. Roman law had already begun to develop delict that was the basis of tort. It began to reflect the interests of society, it promoted inequality in society. 90% of society had no rights and no remedies for injuries to person and property. Whichever law developed was for the benefit addressed the 10% who had property and rights. These could get remedies if they were injured or their property rights were violated. The law that was produced was a class law designed for a class of persons. The slaves could only benefit from incidental protection. Today the law plays an ideological role. Unlike during the period of slave society the law is not open about the inequality it perpetuates. The issues of human rights and principles of equality before the law it perpetuates the false notion that people are actually equal before the law and generally in society. Eventually slave societies collapsed because the empires had become unsustainable. The slave population became too small to sustain the majority who were not participating in production. As the slaves were exploited trade developed in the Roman Empire. The slaves had therefore to sustain all the trading partners. The Roman got slaves from conquest but as trade developed war and conquest ceased to be viable sources of slave labor. This inevitably led to a decline in the slave population. The rate

of reproduction among the slaves was also very low because of the high proportion of males. Later slaves could be freed which further depleted the population of slave labor. This made the large- scale agricultural estates unsustainable. The Romans were overrun by the Barbarians. It was

out of the ashes of the slave system that the feudal mode of production evolved in Europe. The large-scale agricultural units collapsed in to smaller units. The slaves scattered and sought patrons and lived in what came to be called coloni. They lived together and shared common facilities. It was out of these societies that the feudal system developed.

FEUDAL SOCIETIES. 800AD to 1450AD.

When the Roman Empire collapsed all urban life collapsed and people reverted back to rural conditions. This was when the common law system began to emerge forming the foundation of today's legal system. The economic base was feudal land ownership (serfdom). The serfs were the direct producers and were tied to the land. Production was agricultural and the water wheel, harness, and the plough were the main instruments of production. It was possible to use animals as it was mainly small scale agriculture. There was scattered handcraft industry. It was a natural economy and they produced use values for consumption. The main economic unit was the manor which developed from the colonii. There were landlords who owned large estates of land occupied by serfs who produced the means of production. The serf produced for his own sustenance and also for the landlord. They engaged in surplus labor. There was also common land for grazing. Exploitation here was based on land ownership and the landlords extracted the surplus from the serfs in the form of rent for the use of the land. This rent was payable in various forms including labor or produce. Guilds also later developed and were under guild master who had apprentices and journeymen working for them. Guilds engaged in pottery, weaving and blacksmithing. In the countryside they had the cottage industry doing the same. The feudal state was part of the economic structure. Here there was also the hegemony of the church. The church was the largest land owner and had a lot of political power. The feudal state was highly decentralized with the feudal lords wielding a lot of power. The monarchy was the first among equals and though the serfs were not slaves in the sense of being owned by the landlords they were tied to the land by law.

DEVELOPMENTS OF THE LAW IN THIS PERIOD.

Feudal exploitation depended on land ownership. The law therefore was preoccupied

with protecting interests in land. This was opposed by the Magna Carta of 1215 which was in a sense an early version of a bill of rights. It tried to protect the rights of the serfs. The developed writs which were in a sense the causes of action. A writ is a way of starting a

legal action and covered various forms of conduct which was considered to be actionable. If no writ covered a particular situation, then the person had no remedy in law. The law of torts as it exists did not exist until about 1280. Court action could be begun in two ways: by the individual (appeal) and by the state (indictment). Note the strong language of criminal summons as opposed to the “humble prayer” of a plaintiff in civil actions especially petitions. All cases were regarded as criminal and there was no demarcation as we have it today. Private actions were risky because they could be tried by battle and if one lost they could lose their property or even be sent to jail so the indictment was very popular. Towards the 13th century the writ of trespass was introduced and it was the foundation of all torts and it was both civil and criminal. It was designed to address serious breaches of the peace.

Trespass was both civil and criminal because if successful it ended in the compensation of the plaintiff and punishment for the defendant. As society developed there arose situations where trespass was not a direct consequence of the actions of the defendant and could not be remedied under the traditional writ of trespass. The courts created a writ analogous to trespass to remedy consequential trespass i.e. trespass on the case. Trespass on the case is what developed in to negligence to remedy consequential harm. In its early stages it was limited to persons carrying on common callings e.g. innkeepers, blacksmiths, journeymen and common carriers.

-The law further developed to apply to a person not because they pursued a common calling but because they undertook to perform something. This was called assumpsit and laid the foundation for the law of contract.

-Case expanded to cover other feudal interests like the writ of debt, the writ of detinue and account. Detinue was the wrongful detention of a chattel and was usually against a Bailee. The writ of debt was used to recover money, the price of goods, money from a surety, money promised under a sealed document and statutory penalties. Covenant dealt with undertakings under seal.

-The writ of account dealt with accountability. It was usually brought by feudal lords against bailees who collected for them rent from their estates.

-What is today called assault, battery and theft were covered by trespass because there was infliction of physical injury. When there was trespass intention was immaterial.

-False imprisonment was handled as a battery since there was application of force directly.
This was aimed at protecting the rights of mobility granted by the Magna Carta.

-Malicious prosecution was not distinguished from false imprisonment but when it was it was called a writ of conspiracy.

-The writ of nuisance was designed to protect immovable property from interference especially land since it was the most important form of property.

-The writ of defamation began as a criminal case. It was not available for the peasants in the beginning since they did not have a reputation to protect. It was aimed at protecting the state from ridicule but even private individuals could benefit from its protection. The manorial courts had jurisdiction to hear these cases until they were taken over by the king's courts.

The court of Star Chamber had exclusive jurisdiction to hear defamation cases. The king's court punished defamation and the ecclesiastical courts punished slander.

THE PERIOD OF MERCANTILISM 1450 -1700.

This was a period of great change. In this period feudalism was fading and capitalism was taking center stage. It was marked by the rise of towns and merchant capital. Trade developed out of the expansion of guilds. The merchant class emerged and became differentiated from the guilds. Trade towns developed based on fairs. Trade fairs were temporary markets. It was still a natural economy and trade could not have permanence. As the fairs became permanent trade towns developed. The merchants then began to penetrate the feudal economy. · Serfs and peasants engaged in the cottage industry and the merchants supplied them with the materials for production and bought the products from them. · The merchants began selling luxuries to the feudal lords and money penetrated the feudal economy. There were natural limits to feudal exploitation but when money came in the nobility desired the luxuries supplied by the merchants and the level of exploitation escalated. This led to the peasant riots which rocked Europe during this period. The merchant class was growing much richer and superseded the nobility. The feudal arrangement was not compatible with a money economy so the lords began to ask for money rent which made the serfs free to work elsewhere to earn the money to pay the lords. They then lost their ties with the land and became free peasants. This infiltration of money into the feudal economy led to the development of an exchange economy which enriched the merchants at the expense of the nobility. The people in the

country side ceased to be self- sufficient and the feudal economy died.

THE DEVELOPMENT OF MANUFACTORIES.

In the beginning merchants supplied raw materials to the cottage industry and bought products from them. They later consolidated the manufactories into manufactories. They were different from the modern factories in the sense that there was no division of labor, the direct producers owned the means of production and there was no wage labor. Manufactories led to commodity production that facilitated the exchange economy.

ENCLOSURE MOVEMENT.

This completed the process in that there was an unprecedented expansion in the manufacture and trade in wool, which was highly priced. Capitalist farmers engaged in the production of wool in the countryside. Because of the high prices of wool, the capitalist farmers enclosed the countryside to make sheep rands. The free peasants were uprooted from the countryside and became labor. It led to the emergence of a labor market in the urban areas. This led to a larger market, which facilitated an international economy. The enclosure movement went hand in hand with the disruption of the feudal system and affected the church as the largest landowner. The transformation in feudalism also took the form of a reformation in the church.

INTERNATIONAL TRADE.

Trade in the beginning was international and occasional in nature. When international trade began in Europe it took the form of plunder and brigandry. The exploration of a route to the east began in search for silver and gold as the mines in Europe were exhausted. Silver and gold were used as money and thus were very important. This led to the establishment of the triangular trade. Because of the expansion in trade the merchants became very powerful. The merchants began to combine with the monarchy in the state. The monarchy sold charters of trade to the merchants and the merchants extended credit to the lords that led to the accumulation of the public debts. They established a central bank to take care of the public debt. This weakened the feudal nobility and the merchants rose to power. The feudal kings relied on the merchants and abandoned the nobility. This led to the emergence of despots because the nobility could not control the kings and yet the merchants also did not have the power or the goodwill to restrain the kings. This period ends when industrial capital is coming in leading to

revolutions.

DEVELOPMENTS IN THE LAW.

Economic activity became more and more socialized. An exchange economy developed over the natural economy. The common law begins to absorb principles of law developed by the merchants (lex mercatoria). The merchants moved from community to community, had

their own laws and their own courts called fair courts or custom courts to solve their conflicts in trade. The common law courts did not handle issues related to commercial transactions which were alien to the natural economy. The merchant law principles developed separately and applied throughout Europe. As trade developed the merchant courts began to merge with the common law courts. The common law courts then became able to adjudicate in commercial transactions. This strengthened the bond between the nobility and the merchants. The law of contract was firmly established. The law of tort also developed to cover new areas for example transport and injuries in manufactories. This period witnessed important political developments. The overthrow of feudalism was manifested in the reformation by Henry VIII. The church as a powerful ally of the state was overthrown.

There were also bourgeois revolutions to establish constitutional arrangements. The law of tort developed to cover malicious imprisonment, defamation etc. owing to the fact that this was the first exchange economy it produced principles suited to the exchange economy.

Trover was developed to cover situations where the defendant was willing to return a chattel but had either willingly or wrongfully damaged it or parted with possession of it. The essence of the action was not wrongful detention but failure to return it. This is what is called conversion to day.

MISFEASANCE.

This was intended to cover breach of contract. The common law developed a mature concept of contract. They were not conversant with commercial transactions and were not sure which type of contract was enforceable and which ones were not so they developed the concept of consideration in order to deal with the question of enforceability.

Detinue at first was limited to bailment but was later extended to cover situations where

the defendant refused to return a chattel when it was demanded by the plaintiff. The mobility of chattels had led to a transformation in the law. Debt was also extended to cover a wider variety of debts. Liability for dangerous things was also established. An action on the case could be brought against someone who engaged in dangerous projects on his land irrespective of intention to cause damage. Trespass at that time did not have regard to questions of intent or accident. Because of the rising populations injuries were more

intentional than not soothe concept of strict liability developed to address such situations. It was adjusted to cover negligence.

Defamation continues as a crime and includes sedition. It was crucial for the survival of the state because of the upheavals that rocked Europe at the time. The law of defamation and sedition were perfected at this time. In this period printing had begun and there was a need to control publication. Defamation had begun in the 16th century as a common law action. A person could bring an action for defamation. Ecclesiastical courts handled the less serious forms of defamation so there was competition with the king's courts. However, the church did not award damages as the common law courts did. As the tort developed the essence of the case became damage and not the words.

The feudal nobility was prone to gambling and dueling. They did not understand the action so they turned it into a way of making money. The courts were forced to formulate the action in more precise terms. I.e. ·

- Truth was a defense. One who spoke the truth was not liable.
- There must be publication to a third party and this was intended to exclude mere insults.
- An action for defamation does not survive a plaintiff for the benefit of his estate.
- There was a distinction between libel and slander.

MALICIOUS PROSECUTION.

In 1589 a writ of conspiracy had been established. Conspiracy became the action for malicious prosecution. The essence of the action became damages and not the conspiracy. It covered issuing of malicious warrants against people.

Lovett V Faulkner. In this case the court held that the action could not lie against one who reported a case of treason. In a later case it was reversed and the court held that when one brought a case of treason against another maliciously they were liable in malicious prosecution.

Walter V Smith in the 1858 case of Knight V King the court held that the essence of the action was not the conspiracy and even one person could be sued.

In Saville V Robert the court held that a) the plaintiff must have suffered damage to his name or property in an action for malicious prosecution. b) There had to be express malice and iniquity. c) The ground of the action was not conspiracy and it could be

brought against a single person. d) No action could lie in a malicious civil action because the court would

award damages to the successful party. e) The proceedings relied on must have terminated in favor of the plaintiff.

Week 2: INDUSTRIAL CAPITALISM 1700 – 1870.

This period was distinct from those before it because it was characterized by commodity production based on wage labor on the one hand and private ownership of means of production on the other. Production is by machinery and factory system on the basis of competition. The social basis for the capitalistic production had been laid in the period of mercantilism through primitive accumulation. This was done through unequal exchange, brigandage, long distance trade etc. The technical developments were furnished by the industrial revolution which was marked by extensive invention especially in the textile industry. In this period manufactories were superseded. The aim of production was profit and accumulation of surplus value. The initial form of capital was user capital. The capitalists bought commodities and resold them at a profit. There was exploitation of labor which led to struggles between labor and the capitalist over the level of remuneration, working conditions etc. as a result the capitalists accumulated a lot of wealth and controlled the state. This led to bourgeoisie revolutions in a bid to establish democracy and republican rule. There emerged the ideologies of freedom, equality and liberty. The monarchy either accepted the dictates of the bourgeoisie like in England or resisted and got thrown aside like in France.

DEVELOPMENTS IN THE LAW.

There was a greater magnitude of risks of injury especially in the factories and out of the transport system. The working class lived in horrid conditions because they were at the mercy of the profit oriented capitalists. There was also mass production as a result of the industrial revolution, which heightened the risks to consumers. The capitalists were in frantic competition and needed to survive. They were not ready to reduce their profits to pay workers or pay them compensation for any injuries. The law was preoccupied with the protection of capitalists at the expense of other classes of society. There was introduction of democracy and the state is somewhat liberalized. The law of defamation

was relaxed.

Trespass became a personal action. Many of the injuries that occur are not remedied because the law is preoccupied with preserving the profitability of the capitalists.

DEVELOPMENTS IN THE LAW OF DEFAMATION.

This time there were developments to try and put aside the law especially in regard to public affairs. The law creates a lot of defenses to the action of defamation. There was a representative government and public affairs had to be discussed even the conduct of public officials. They had public rallies with a lot of freedom of speech.

In 1840 there was a Parliamentary Papers Act, which provided for freedom from defamation liability for publishers of parliamentary papers. In 1843 Lord Campbell's Act allowed an apology to be pleaded in mitigation of damages in an action for defamation.

In 1868 there was the case of *Watson V Walter*, which accepted an apology to be pleaded in mitigation of damages for defamation. It extended the defense of qualified privilege to publishers of independent paper reports of parliamentary proceedings.

In 1881 the Newspaper Libel Act had a lot to do with criminal defamation. It provided that where there was an accurate, fair and un malicious report of proceedings at a lawfully convened public meeting, such a report would be privileged even if it contained defamatory matter as long as the editor allowed the person concerned a chance to explain in the next issue of the paper.

SUMMARY OF DEVELOPMENTS DURING THIS PERIOD.

The law was concerned with the protection of private enterprise. In order to achieve this, three defenses were developed; Common employment, Contributory negligence and Voluntary assumption of risk. These were used to reduce the liability for injuries.

Vicarious liability also became established during this period, thus widening liability. A person was held liable for the torts of another on the basis of the legal relationship between them (Principal/ agent, Employer/ Employee relationship). The Principal/ Employer/ Master was made liable for the torts of his agent/ employee. This was because torts in industries were more likely to be committed by employees than employers. Therefore, employers were made liable in damages for torts committed by their servants in the course of employment.

Common employment; A workman could not recover damages against his employer (vicarious liability) for injuries caused to him by another workman in the same employment. In this way the benefits of vicarious liability were denied to employees in the industries.

This development was due to the fact that the majority of accidents were caused by fellow employees.

Contributory negligence; If a person was injured as a result of the negligence of another person but the victim in some way contributed to his own injuries the courts could not allow him to recover damages to the full extent of his injuries. This was therefore an absolute defense at that point in time.

Voluntary assumption of risk; If one consented to risks he could not recover damages in respect of the resultant injuries. This was used by employers to prevent workers in factories from recovering damages in respect of their injuries. The employers claimed that the employees entered employment knowing the risks they faced.

STRICT LIABILITY.(we shall learn about it in detail next semester)

Rylands V Fletcher.

The law developed strict liability in relation to the use of land. It was designed to redress disputes amongst property owners. If one committed a tort, he would be liable even if he had put in place precautions against the tort or had good intentions in committing the same.

Capitalism was unplanned and the competing use of land was bound to result in injuries to some people, which made strict liability necessary. It was limited to the protection of property owners through recovery of damages to property and was not extended to personal injuries.

Qns: 1. *Discuss the developments in the law of torts during industrial capitalism and give reasons for those developments.*

2. *“The development of the law of tort during the era of industrial capitalism was influenced by the principle of welfarism more than capitalism.” Discuss.*

THE PERIOD OF FINANCE CAPITAL.

This was a period of monopoly capital. It emerged from industrial capitalism which was geared towards profit accumulation. There was a lot of competition and massive technological innovation. Because they produced for an unplanned market and due to

stiff competition some industrialists were out competed, undercut, forced to sell their capital or became subsidiaries of bigger enterprises and monopolies begun to emerge. This was due to the cost of production. The price of raw materials was rising and monopolies had to be

organized to control the price of the raw materials. Monopolies emerged through two main processes: centralization and concentration. Concentration is the process of accumulation (ploughing back the profits into production in order to accumulate value.) it is a quantitative process. Centralization is a qualitative process. Capital already accumulated is spread among smallholdings that are merged into bigger units e.g. cartels that are more qualitative as smaller units. The two processes affect each other: after accumulation, there is a better position to centralize. These processes resulted in to monopolies and since they grew out of competition they became self- enhancing and they grew bigger and bigger in to international monopolies.

THE NEW ROLE OF BANKS.

The formation of monopolies also occurred in the field of banking. Bigger banks took over smaller ones. Through credit facilities, they became universal keepers and distributors of capital/ means of production. They accelerated and intensified the process of centralization and concentration through the credit facilities. They determined which enterprise should be funded and this favored the big monopolies at the expense of the small firms. The high profile of the banks is reflected in the collapse of the stock exchange. This was because they collected large sums of money through extending credit, discounting bills of exchange and maintaining current accounts.

FINANCE CAPITAL

This was not money capital but a social phenomenon that occurred in the 1870's. One of the most important developments in this period is the emergence of a close connection between the banks and the industries. Previously banks had been intermediaries for deficit and surplus budgets. Banks developed a close relationship with the industries through their multiple dealings with the industries which enabled the banks to obtain fuller and more detailed information about the economic conditions of those enterprises. In the result, the industrial capitalists became more and more dependent on the banks. There was thus establishment of personal links between the banks and the big

industrial and commercial enterprises, acquisition of shares and appointment of bank directors to boards of directors of the commercial enterprises and vice versa. This is enhanced by appointing government

representatives and civil servants to boards of these industries. The result is that banks hold shares in industries and industries hold shares in banks. There is a “merger”. There is no independent bank capitalism and industrial capitalism, thus forming a new form of finance capital. Banks developed division of labor amongst themselves, i.e. certain directors for certain areas in industry and also developed research units to improve on production. The concentration of production and the monopolies arising there from, the merging of coalitions between banks and industries, is the history of the rise of finance capital.

THE EXPORT OF CAPITAL

Capital that was concentrated in Europe could not be used profitably due to over production (capitalist production became more and more capital intensive and the labor variable reduces) which lowers prices and the wages. There was need for cheap sources of raw materials and the need to control such sources. Capital was exported, on the basis of monopoly, from Europe to open up new markets, new sources of raw materials and infrastructure in those areas.

DIVISION OF THE WORLD AMONGST MONOPOLY COMPANIES

As a result of the potential export of capital, the monopolies that emerged divided the world amongst themselves. They carved out sphere of influence for themselves where they could export capital exclusively and acquire raw materials cheaply to maintain their monopoly power and keep out others e.g. I.B.E.A.Co.

PARTITION OF THE WORLD

The division of the world between companies could only be guaranteed by the state and its power of coercion acting on behalf of the monopolies. This was the essence of imperialism and colonization.

LEGAL DEVELOPMENTS

With the export of capital to places with cheap raw materials and access to markets, supernormal profits were earned. These profits provided an opportunity to make

concessions that were necessary for capitalism to continue. This was because the conflict between the capitalist and the working class has sharpened. By the mid 19th century and onwards the working class had organized themselves into trade unions and socialist parties to overthrow

capitalism. They cultivated socialist ideologies like Marxism and socialist revolutions. Capitalism was therefore under siege and it became necessary to make concessions to the working class to alleviate their living conditions and maintain capitalism. The concessions are represented through welfarism to benefit the working class. There were unemployment benefits, compensation in case of injuries and insurance to protect the working class. These were not based on tort but statute.

Within the law of torts, the concessions were represented in the relative liberalization of the law. a) There developed liability in negligence based on fault which was a broad basis of liability for the manufacturers, liability in negligence based on statute and the law was no longer exclusive b) The defenses of common employment, voluntary assumption of risk and contributory negligence were modified.

Common employment and contributory negligence were modified by statute. Contributory negligence was no longer an absolute defense. Rather the damages a plaintiff receives are reduced. Common employment was abolished by statute - The courts modify the defense of voluntary assumption of risk. Court imposed stringent measure for it such that it no longer afforded much protection to the industries. c) The new technological developments as a result of the industrial revolution produced new risks. The chemical industry was invented and became the basis of manufacture. This led to mass production of consumer products, which presented new risks to the consumers due to the quality of products. Product liability was developed to safe guard consumers, which became the basis of the law of negligence.

See *Donoghue V. Stevenson* d) There also developed liability for negligent misstatements mainly in respect of banks that gave investment advice and other such firms. See *Hedley Byrne & Co. V. Heller*

Relationship between the law of tort and insurance:

Insurance provided an opportunity for people to insure against new risks that technological developments presented. There was social insurance by the welfare state e.g. motor accidents insurance and health insurance.

LAW OF TORTS IN UGANDA

RECEPTION AND EVOLUTION OF ENGLISH LAW IN UGANDA

There was no parliament or law making body but the administration was governed by the OIC. It thus brought in the English law.

The OIC, (1) established the high court of Uganda. (2) Through its amendment in 1911, it clearly provided for the date of reception of the law of England. 3). It introduced the repugnancy doctrine. The court had jurisdiction to hear non natives and cases which involved a native and a non native. The 1902 OIC brought in law though of English origin but from India. It provided that civil procedure, criminal procedure and the penal code of India except so far as it may otherwise be provided would apply in Uganda. It remained the substance of the law till 1962.

The Judicature Act 1962 was made by the parliament of Uganda then. It provided in sec 2 that the substance of the common law of England, doctrines of equity in force in England on the date of reception shall continue to apply provided the said common law, doctrines of equity and statutes of general application shall be in force in Uganda only so far as the circumstances of Uganda and its inhabitants permit, subject to such qualifications as local circumstances may render necessary. The Judicature Act 1967, ended the statutes of general application as the laws applicable in Uganda. See *UG motors Ltd v Wavah Holdings Ltd*. Art 20, of the 1902 OIC provided as follows: in all cases, civil and criminal to which natives are parties every court case shall be guided by native law so far as applicable and is not repugnant to morality or inconsistent with any OIC or ordinance or regulation or rule made under any OIC or ordinance. In summary, the law applied is categorized as statutory law: principal and subsidiary law, also known as written law customary law, other than criminal law applied law: law which is made by British parliament and accepted by the judicature statute doctrine of equity

Note: see 1st schedule of the judicature act for applied law.

What is common law?

Common law is the common sense of a community crystalized and formulated by our ancestors. It's the customary law uniformly accepted in society. It evolved through certain courts in England through their administration of justice. They recognized and applied certain customs as being uniform. Thus it's either: the system which puts emphasis on legal decisions (the doctrine of precedent) or common law according to common law countries and is civil law.

How did common law become part of the law applied in Uganda?

The Africa Order in Council of 1889 required the consul to exercise jurisdiction in conformity with the substance of the law in England. Specifically, for Uganda it was the

1902 OIC. These continued to operate till independence when they were repealed and the judicature acts came in to carry on the substance of the application of the common law What are the present guidelines/ principles to the application of common law?

Guiding principles in application of common law “substance of the common law”; court does not apply the whole common law but the substance of it applied only in so far as the circumstances permit if there is a conflict between the rules of equity and common law, the rules of equity prevail because the principles of equity (natural justice) are more acceptable and less alien than the common law. The MCA sec 10 (3) says if in any cause or matter there is a conflict or variance between the rules of equity and rules of common law with reference to the same subject matter, the rules of equity shall specifically provides that the common law of England shall apply.

INTRODUCTION TO THE LAW OF TORTS



THE NATURE OF A TORT

A tort is committed against an individual (which includes artificial persons) as opposed to

the State. This is because all persons have protected rights at law and abuse or violation of such rights may occasion the claim of damages, injunctions etc.

The standard tort consists of the following elements:

Act or omission by the Defendant;

Damage occasioned to a claimant as a consequence of the act or omission;
and This can be represented by the widely accepted model:
act (or omission) + causation + protected interest + damage = liability

The main purpose of the law of tort law is compensating the victims of wrongdoing for the injuries they suffer as a result.

FUNCTIONS AND MEANING OF THE LAW OF TORTS

Functions of the Law of Torts

It is not possible to assign any one aim to the law of torts, which is not surprising when one considers that the subject comprehends situations as disparate as 'A' carelessly running down 'B' in the street; or 'C' calling 'D' a thief, or 'E' giving bad advice to 'F'.

The law of torts has primarily four functions –

- 1). It provides remedies for wrongs;
- 2). It provides compensation for the wrongs
- 3). It acts as a deterrent and provides protection; and,
- 4). Tort law is concerned with corrective justice and distributive justice.

In general, therefore, the law of torts exists for the purpose of preventing men from hurting one another, whether in respect of their property, their persons, their reputations or anything else which is theirs. The fundamental principle of this branch of the law is '*alterum non laedere*' – to hurt nobody by word or deed.

An action of tort is therefore a claim for pecuniary compensation in respect of damage suffered as the result of the invasion of a legally protected interest. An interest is a claim or demand or want or desire put forward by man in a civilized society.

The task of courts is first, to decide which interests should receive legal protection, and secondly, to hold the balance between interests which have received protection. It is obvious that not all objects of human desire can or should receive legal protection.

Tort Defined

A tort is a civil wrong for which the remedy is a common law action for unliquidated (unspecified/unquantified) damages and which is not exclusively the breach of a contract or the breach of a trust or other equitable obligation (See pages 14-15 of SALMOND AND HEUSTON ON THE LAW OF TORTS, 26TH EDITION)

Tortuous Liability Defined

Tortious liability arises from the breach of duty primarily fixed by law; this duty is towards persons generally and its breach is redressible by an action for unliquidated damages

The person who sustains injury or suffers pecuniary damage as the result of tortious conduct is known as the plaintiff, and the person who is responsible for inflicting the injury and incurs liability for the damage is known as the defendant or tortfeasor.

Graphically, tortious liability is constituted as follows: Duty of care (owed to persons with whom there is no contractual liability) + negligence performance of that duty.

E.g. if a person fails to maintain his property and part of his property falls off and injures another person, the property owner is liable for the damages to that person, even though it may be a passerby with whom there are no contractual obligations”.

LAW OF TORT DISTINGUISHED FROM CRIMINAL LAW AND LAW OF CONTRACT

Tort versus Criminal Law

A tort is a civil wrong. Proceedings in a tort are therefore civil, that is to say, the purpose is to enforce some right claimed by the plaintiff as against the defendant.

Criminal proceedings on the hand aim at achieving the objective of punishing the Accused for some act of which s/he is accused.

It is often the case that the same wrong is civil and criminal – capable of being made the subject of proceedings of both kinds e.g. assault, libel, theft and malicious damage to property. Speaking generally, in all such cases, the civil and criminal remedies are not alternative but concurrently, each being independent of the other. The wrong doer may be punished criminally by imprisonment or otherwise and also compelled in a civil action to make compensation or restitution to the injured person e.g. a negligent driver who hits into a person, can be prosecuted for a criminal offence of careless driving and be sued in a civil matter (tort of negligence) for damages by a person whom he hit into.

Tort versus Law of Contract

The distinction between tort and contract is that the duties in tort are primarily fixed by law, while in the latter they are fixed by the parties themselves. Referring to a tort for

example, a person would say as follows: I am under a duty not to assault you, not to slander you, not to trespass on your land, because the law says I am such under such a duty and not because I have agreed to undertake such a duty.

In tort, the duty is towards persons generally whereas in contract it is towards a specific person or persons.

The core of contract is the idea of enforcing promises whereas tort aims principally at the prevention or compensation of harms.

GENERAL CONDITIONS OF LIABILITY IN TORT

Faulty and Non-Faulty Liability

What is a fault based tort?

This question is largely concerned with the mental element of tort.

“It may not be sufficient for the claimant to demonstrate that the defendant’s act or omission caused them damage in order to succeed in an action.....it may also be necessary for the claimant to show a particular state of mind on the part of the defendant. Where such a state of mind needs to be proved, it is said to be a *fault-based tort*.....where no such state of mind needs to be proved it is said to be a strict liability tort.....”

With time, fault based tort has shifted from being a state of mind to being a judicially set standard of conduct which is objectively set. The law finds ‘fault’ in a failure to live up to an ideal standard of conduct (negligence). Therefore, ‘fault’ is today not an essential element in tortious liability.

The position of Intention, Malice and Motive in Tort

Intention in tort is generally irrelevant. A practical joker will be held liable in the tort of negligence if he frightens another by a joke causing nervous shock to that person

See **WILKISON V. DOWNTON (1897) 2QB 57**

In tort, the term ‘malice’ has two meanings as follows:

The intentional doing of some wrongful act without proper excuse;

and To act with some collateral or improper motive

With respect to the latter the general principle is that malice is irrelevant in the law of tort (Exceptions: torts of malicious prosecution and nuisance).

If one has a right to do something then his motive in doing it is irrelevant. The law in general asks merely what the defendant has done, not why he did it. A good motive is no justification for an act otherwise illegal (exceptions: defences of necessity, private

defence for they depend to a certain extent on a good motive on the part of the defendant), and a bad motive does not make an act otherwise legal. The leading case here is

BRADFORD CORPORATION V. PICKLES [1895] AC 587.

There are two exceptions to the general principle that malice is irrelevant in tort i.e. torts where malice is a significant ingredient. These are torts of malicious prosecution and nuisance. The case in point is **CHRISTIE V. DAVEY [1893]1 CH316**

Damnum Sine Injuria

There are many forms of harm which the law takes no account. Damage so done and suffered is called 'damnum sine injuria'. For example, the harm done may be caused by some person who is merely exercising his own rights; as in the case of loss inflicted on individual traders by competition, or when the damage is done by a man acting under necessity to prevent a greater evil, or in the exercise of statutory authority. Or the courts may hold, on balancing the respective interests of the parties that sound policy requires that the interest of the defendant should prevail over those of the plaintiff e.g. **BRADFORD CORPORATION V. PICKLES (1895) A.C. 587** where the court was of the view that the natural to support of a land owner is subordinate to the natural right of his neighbour to exploit his property by the extraction of underground water not percolating through undefined channels, whether the defendant had acted intentionally or carelessly.

Other examples may be found in the law relating to damage caused by defamatory statements made on a privileged occasion.

Injuria Sine Damno

Just as there are cases in which damage is not actionable as a tort ('*damnum sine injuria*'), so conversely there are cases in which behavior is actionable as a tort, although it has been the cause of no damage at all ('*injuria sine damno*'). Torts are of two kinds – namely, those which are actionable per se, and those which are actionable only on proof of actual damage resulting from them. Thus the act of trespassing upon another's land is actionable even though it has done the plaintiff not the slightest harm.

Joint and Several Tortfeasors

Where two or more people by their independent breaches of duty to the plaintiff cause him to suffer distinct injuries each one of them is liable for his damage. However, if two

or more breaches of duty by different persons cause the plaintiff to suffer a single injury, the plaintiff can sue all or any one of them for his full loss. Thus the proceedings shall be dealt with as a joint liability or several (separate) liability. In **ROOKE V. BOOL (1928) 2QB. 578**, each of

the two men searching for a gas leak applied naked light to a gas pipe in turn and one of them causing an explosion. They were held to be joint tortfeasors. Persons are joint tortfeasors when they are responsible for one tort and they must have concerted their efforts in the commission of that particular tort. Examples of joint tortfeasors are crooks beating one person, joint occupiers, vicarious liability (master and servant) or a principal allowing his agent to commit a tort.

Here, the following principles apply:

1. One tortfeasor has a right of contribution from any other tortfeasor who is or would if sued have been, liable in respect of the same damage;
2. The Court awards whatever contribution is just and equitable, having regard to the extent of the joint tortfeasor's responsibility for the damage; this in the court's discretion amount to complete indemnity.

See:

BROOKE V. BOOL (1928) 2QB. 578 above.

LISTER V. ROMFORD ICE AND COLD STORAGE CO. [1957] A.C.555 H.L

UNIT 2:TRESPASS TO THE PERSON

WEEK 3: ASSAULT AND BATTERY

Any direct intentional interference with the person of another is actionable in the absence of lawful justification. It is now settled that if the interference is unintentional the injured party's only cause of action lies in negligence. Trespass to person is actionable per se, i.e., without proof of special damage. The tort seeks to protect personal integrity, which is regarded as being fundamental that it is protected even in the absence of damage. The tort of trespass to persons is a fault- based tort-it is therefore not actionable in the absence of intention. See the case of FOWLER V. LANRING [1959] 1 Q.B. 426.

There are three main forms of trespass to a person, namely, assault, battery and false imprisonment and their common element is that the wrong must be committed by "direct means". Any direct invasion of a protected interest from a positive act was actionable subject to justification. If the invasion was indirect, though foreseeable, or if

the invasion was from an omission as distinguished from a positive act, there could be no liability in trespass though the wrong-doer might have been liable in some other form of action.

The principal use today of these torts relates not so much to the recovery of compensation but rather to the establishment of a right, or a recognition that the defendant acted unlawfully. These torts are actionable without proof of damage (or actionable per se), they can be used to protect civil rights, and also will protect a person's dignity, even if no physical injury has occurred (for example the taking of finger prints). Acts of trespass to the person are generally crimes as well as torts

Assault

An assault is an act which intentionally causes another person to apprehend the infliction of immediate, unlawful, force on his person.



It is an attempt or a threat to hurt another, coupled with an apparent present liability and intention to do the act. Actual contact is not necessary in an assault, though it is in a battery.

But it is not every threat, when actual personal violence does not lie that constitutes an assault; there must, in all cases, be the means of carrying the threat into effect. Assault can be defined as an act of the defendant which causes the claimant reasonable apprehension of the infliction of a battery on him by the defendant. While Battery occurs where there is contact with the person of another, and assault is used to cover cases where the claimant apprehends contact.

The intention as well as the act makes an assault. Therefore, if one strikes another upon the hand, or arm, or breast in discourse, it is no assault, it is...; but if one, intending to assault, strikes at another and misses him, this is an assault; so if he holds up his hand against another, making a fist in a threatening manner, and says nothing, it is an assault. Initially it was thought that mere words did not amount to an assault. But the words which the party threatening uses at the time may either give gestures such a meaning as may make them amount to an assault, or, on the other hand, may prevent them from

being an assault.

Assault of course requires no contact because its essence is conduct which leads the claimant to apprehend the application of force. In the majority of cases an assault precedes a

battery, but there are cases which occur the other way around like a blow from behind inflicted by an unseen assailant.

It was stated earlier that some bodily movement was required for an assault and that threatening words alone were not actionable, as aptly laid down in **R v Meade and Belt (1823) 1 Lew CC 184**, that 'no words or singing are equivalent to an assault'. This latter stand was rejected by the House of Lords in **R. vs. Ireland**, where it was opined that threats on the telephone may be an assault provided the claimant has reason to believe that they may be carried out in the sufficiently near future to qualify as “immediate”.

The House of Lords have more recently stated that an assault can be committed by words alone in **R v Ireland [1997] 4 All ER 225**, and the Court of Appeal in **R v Constanza [1997] Crim LR 576** opined that, It is much more authoritative that words will not constitute an assault if they are phrased in such a way that negatives any threat that the defendant is making.

See: *Tuberville v Savage* (1669) 86 ER 684

Stephens v Myers (1830) 172 ER 735

The claimant must have reasonably expected an immediate battery. Thus in **Stephens v Myers (1830) 172 ER 735**, the defendant made a violent gesture at the plaintiff by waiving a clenched fist, but was prevented from reaching him by the intervention of third parties.

The defendant was liable for assault.



A battery includes an assault which briefly stated is an overt act evidencing an immediate intention to commit a battery.

It is mainly distinguishable from an assault in the fact that physical contact is necessary to accomplish it. Battery is the intentional and direct application of physical force to another

person. It does not matter whether the force is applied directly to the human body itself or to anything coming in contact with it. Battery requires actual contact with the body of another

person so as to seize and lay hold of a person so as to restrain him; spitting on the face, taking a person by the collar, are all held to amount to battery.

In **Cole v Turner (1704)**: 'The least touching of another in anger is a battery'. However, such a widely drawn principle must inevitably be subject to exceptions: *Collins v Wilcock* [1984] 1 WLR 1172. Controversially, the Court of Appeal said that there must be a 'hostile touching': **Is 'hostility' a necessary element of battery? In Re F [1990] 2 AC 1 (at p 73)**, Lord Goff said that he doubted whether it is correct to say that the touching must be hostile, and further: 'the suggested qualification is difficult to reconcile with the principle that any touching of another's body is, in the absence of lawful excuse, capable of amounting to a battery and a trespass.'

If a person intentionally applies force directly to another, the claimant has a cause of action in trespass. However, if a person does not inflict injury intentionally, but only unintentionally, the claimant only has a claim. The defendant's act must cause direct damage, see: *Scott v Shepherd* (1773) 2 B1 R892.

Defenses to assault and battery

Lawful arrest. Where the defendant is carrying out a lawful arrest no tort is committed. The precise procedure must be carried out in order to make an arrest. The arrested person must be told the true grounds on which they are being arrested- exceptions are in the event where the person to be arrested is resisting.

Consent- some examples include boxing, sporting events, medical operations.

Self- Defence- Self-defence is a defence where reasonable force is used in defence of the claimant's person, property or another person. What amounts to self defence will be a question of fact in each case but the basic principle is that the force used must be reasonable in proportion to the attack.

Contributory negligence

Prevention of trespass or ejection of a trespasser. It is lawful for any occupier of land, or for any other person with the authority of the occupier, to use a reasonable degree of force in order to prevent a trespasser from entering or his movements or to eject him after entry.

Defendant acting in support of the law. Sometimes an assault or imprisonment may be justified on the ground that the defendant was acting in support of the law. The onus of proving legal justification lies on the defendant.

Parental and other authority. A parent is not guilty of an assault if he physically interferes with his or her child by way of reasonable restraint or chastisement, or therapeutic reasons.

Inevitable accident. Inevitable accident provides a good excuse for a prima facie trespass which is otherwise actionable. An inevitable accident has been defined as an event over which the defendant had no control, and the effects of which would not have been avoided by the exercise of the greatest care and skill.

WEEK 4: INFLICTION OF MENTAL SUFFERING



Intentional infliction of mental suffering/emotional distress generally involves some kind of conduct that is so terrible that it causes severe emotional trauma to the victim.

In such cases, the victim can recover damages from the person causing the emotional distress. Not all offensive conduct qualifies as intentional infliction of emotional distress, however. People in society must necessarily deal with a certain level of rude or offensive conduct. When the conduct rises to a truly reprehensible level, though, recovery for the resulting emotional trauma becomes available.

Intentional Infliction of Emotional Distress: The Elements

1. Extreme or outrageous conduct that
2. Intentionally or recklessly causes
3. Severe emotional distress (and possible also bodily harm)

If the situation satisfies all of the elements above, the person behaving in the extreme and outrageous manner is liable for both the severe emotional distress and the bodily harm that results from the stress (a miscarriage, for example). In addition, parties may sometimes recover for emotional distress under circumstances where the extreme and outrageous conduct wasn't even directed at them. Typically, this kind of claim involves extreme or outrageous conduct towards the claimant's family member while in the claimant's presence. Here are some of the general elements of the injury:

1. Extreme and outrageous conduct
2. Directed at a third person that
3. Intentionally or recklessly causes
4. Severe emotional distress

To a member of the third person's immediate family (whether or not bodily harm occurs), or to any other person present if bodily harm occurs.

1. Extreme and Outrageous Conduct

Clearly, one of the most important issues in any claim for intentional infliction of emotional distress is defining what exactly constitutes extreme and outrageous conduct. This is a requirement for a claim for intentional infliction even if the actor behaved with malice and/or harmful intent. Extreme and outrageous conduct goes beyond merely being malicious, harmful, or offensive. People must have a certain level of thick skin and possess the ability to weather ordinary rude or obnoxious behaviour for example, when the negligent infliction of mental suffering occurs between people involved in intimate relationships, the question on whether this is sufficient grounds for bringing a tortious action becomes a very important one.

In **Twyman v Twyman**, the court held that “Married couples share an intensely personal and intimate relationship. When discord arises, it is inevitable that the parties will suffer mental suffering, often severe.” Therefore, the question whether infliction of mental suffering is in itself actionable in the case of intimate relationships seems to be a valuable question. While it is true that mental suffering is a part and parcel of married

life, I respectfully disagree with the court. Just because there is bound to be mental suffering in a marriage, it should not absolve a spouse from an increased duty of care on each spouse to

ensure that there is no infliction of severe mental suffering. Such a duty is required of a partner in a marriage to ensure the smooth functioning of a family which is the foundation block of society.

In order to rise to this level, the conduct must exceed all possible bounds of decency. Normal insults or rudeness don't normally qualify as extreme and outrageous conduct, although they can rise to that level if there is some kind of special relationship between the parties. That is, ordinary insults or actions can constitute extreme and outrageous behavior if the actor knows that the victim is particularly susceptible to emotional distress due to a physical or mental condition or abnormality. For example, if Adam knows that Barbara is intensely claustrophobic and intentionally locks her in a closet to scare her, she could possibly recover for intentional infliction of emotional distress.

Exercising a legal right can never amount to intentional infliction of emotional distress, however even if the behavior does cause some severe emotional trauma. If a landlord properly initiates eviction proceedings against a sick and destitute widow who has not paid rent in a year, his actions won't constitute intentional infliction of emotional distress even if the widow does in fact suffer an extreme emotional reaction. Since the landlord was only exercising his legal rights, his behavior is most likely privileged. In the end, the court makes the final decision on whether the conduct in question rises to the level of extreme and outrageous.

2. Intent/Recklessness

The actor must act with intent or recklessness in order to have a valid claim. In other words, the actor must intend to cause severe emotional distress or know that severe emotional distress is likely to occur. For example, if someone receives a text message from their significant other while at a friend's house, becomes angry, and smashes the urn containing their friend's mother's ashes, the friend could possibly win an intentional infliction lawsuit under the theory of reckless disregard.

3. Severe Emotional Distress:

In order to satisfy the elements of an intentional infliction claim, the emotional distress in response to extreme and outrageous behavior must reach a "severe" level. The exact

definition of severe emotional distress is vague, and plaintiffs must prove to the court that the emotional distress they experienced reached a sufficient level of severity to justify an award for intentional infliction.

Some guidelines do exist to help determine whether an emotional disturbance constitutes severe emotional distress. When extreme and outrageous conduct causes suffering such that no reasonable person should have to endure it, the court will likely hold that the experience reached the level of severe emotional distress. The intensity and duration of the emotional distress also contribute to its severity. The longer the emotional disturbance continues, the more likely it is to constitute severe emotional distress.

A plaintiff must use evidence to demonstrate their emotional distress to the court. For example, a plaintiff can use persistent anxiety and paranoia resulting from a Halloween prank gone bad to show that they suffered extreme emotional distress as a result of the conduct.

Sometimes the very nature of the conduct in question will suffice to demonstrate that the victim suffered severe emotional distress. If behavior is particularly disturbing, the plaintiff may not have to offer much evidence to support their claims; the behavior itself is so reprehensible that the emotional distress is almost assumed. Bodily harm also acts as an indicator that severe emotional distress has occurred. Ulcers or headaches, for example, can show that the plaintiff has experienced severe emotional distress that has revealed itself through these physical symptoms.

Week 5: FALSE IMPRISONMENT



False imprisonment may sound like a person being dangerously restrained against their will and at risk of being seriously injured or killed. In a way, it is, but also can describe other situations which aren't so very dangerous sounding.

The definition of false imprisonment is the unlawful restraint of someone which affects the person's freedom of movement. Both the threat of being physically restrained and actually being physically restrained are false imprisonment. In a

facility setting, such as a nursing home or a hospital, not allowing someone to leave the building is also false imprisonment.

If someone wrongfully prevents someone else from leaving a room, a vehicle, or a building when that person wants to leave, this is false imprisonment. This can apply to family members if the person desiring to leave is an adult. Spouses have no legal right to confine each other either. False imprisonment; the word 'false' means 'erroneous' or 'wrong'. It is a tort of strict liability and the plaintiff has not to prove fault on the part of the defendant.

In short, False imprisonment is the unlawful imposition of constraint upon another's freedom of movement from a particular place. This tort protects a person from restraint and does not give a person absolute freedom of movement. Thus, if there is a reasonable escape route there will be no false imprisonment. See: *Bird v Jones* (1845) 7 QB 742 and *Robinson v Balmain New Ferry* [1910] AC 295

Elements that constitute false imprisonment:

1. **The restraint must be complete** i.e.

There must be on every side of him a boundary drawn beyond which he cannot pass. In **BIRD V. JONES [1845] 7 QB 742**, part of a bridge called Hammersmith was

wrongfully fenced off to provide seats to watch a boat race. The Plaintiff forced his way into the enclosure, but was prevented from going on further. As he was in no way prevented from returning, there was no imprisonment". A partial restraint is not false imprisonment;

2. Knowledge of detention is not necessary.

It is not essential that the plaintiff should be aware of the fact of his imprisonment, provided it is a fact. In **GRAINGER v. HILL** it was held that imprisonment is possible even if the claimant is too ill to move in the absence of any restraint. In **MERRING V. GRAHAME- WHITE AVIATION C. [1919] 122 L.T. 44**, it was held that a person detained on aerodrome premises in order to be interrogated was held to be falsely imprisoned although he was not aware that he was not at liberty to leave. Atkin L.J., said, “ it appears to me that a person can be imprisoned while he is asleep, while he is in state of drunkenness, while he is unconscious and while he is a lunatic. Of course the damages will be nominal.

The ground for this opinion is that although a person might not know he was imprisoned, his captors might be boasting elsewhere that he was; and,

3. **The restraint must be complete/ unlawful.**

There must be on every side of him a boundary drawn beyond which he cannot pass. In **BIRD V JONES**, a part of the bridge called Hammersmith was wrongly fenced off to provide seats to watch a boat race. The Plaintiff, forced his way into the enclosure, but was prevented from going on further. As he was in no way prevented from returning, there was no “imprisonment”. A partial restraint is not false imprisonment.

4. **Means of escape.** If a person has the means of escape, but does not know it, his detention is nevertheless false unless any reasonable man would have realized that he had an available outlet. Thus if I pretend to turn the key of the door of a room in which you are and take away the key, it would be unreasonable if you made no attempt to see whether the door was in fact locked.

For example, if Bob enters a room, and Anne prevents him from leaving through one exit but does not prevent him from leaving the way he came in, Bob has not been falsely imprisoned.

An accidental or inadvertent confinement, such as when someone is mistakenly locked in

a room, also does not constitute false imprisonment; the individual who caused the confinement must have intended the restraint.

False imprisonment often involves the use of physical force, but such force is not required. The threat of force or arrest, or a belief on the part of the person being restrained that force will be used, is sufficient.

The restraint can also be imposed by physical barriers or through unreasonable duress imposed on the person being restrained.

For example, suppose a shopper is in a room with a security guard, who is questioning her about items she may have taken from the store. If the guard makes statements leading the shopper to believe that she could face arrest if she attempts to leave, the shopper may have a reasonable belief that she is being restrained from leaving, even if no actual force or physical barriers are being used to restrain her. The shopper, depending on the other facts of the case, may therefore have a claim for false imprisonment. False imprisonment has thus sometimes been found in situations where a storekeeper detained an individual to investigate whether the individual shoplifted merchandise. Owing to increasing concerns over shoplifting, many states have adopted laws that allow store personnel to detain a customer suspected of shoplifting for the purpose of investigating the situation.

-Difference between false arrest and false imprisonment?

- Can a person be falsely imprisoned without his knowledge?
- Can an omission to release a person constitute false imprisonment?
- False Imprisonment And The Constitution

Defence for false imprisonment

Lawful arrest. Where the defendant is carrying out a lawful arrest no tort is committed. The precise procedure must be carried out in order to make an arrest. The arrested person must be told the true grounds on which they are being arrested- exceptions are in the event where the person to be arrested is resisting.

Prevention of trespass or ejection of a trespasser. It is lawful for any occupier of land, or for any other person with the authority of the occupier, to use a reasonable degree of force in order to prevent a trespasser from entering or his movements or to eject him

after entry.

Defendant acting in support of the law. Sometimes an assault or imprisonment may be justified on the ground that the defendant was acting in support of the law. The onus of proving legal justification lies on the defendant.

Parental and other authority. A parent is not guilty of an assault if he physically interferes with his or her child by way of reasonable restraint or chastisement, or therapeutic reasons.

Inevitable accident. Inevitable accident provides a good excuse for a prima facie trespass which is otherwise actionable. An inevitable accident has been defined as an event over which the defendant had no control, and the effects of which would not have been avoided by the exercise of the greatest care and skill.

Volenti non fit injuria is a defence as where a prison visitor agrees to be locked in a cell with the prisoner.

WEEK 6: MALICIOUS PROSECUTION

The Tort of Malicious Prosecution is committed where the defendant maliciously and



without reasonable and probable cause initiates against the plaintiff, a criminal prosecution which terminates in the plaintiff's favor and which results in damage to the plaintiff's reputation, person or property. As a general rule, a person who merely sets in

motion the criminal justice process by lodging a complaint is not liable in malicious prosecution. However, abuse of the legal process will give rise to liability.

The Tort seeks to strike a fair and acceptable balance between the two opposing interest of social policy namely;

The interest in safeguarding person from being harassed by unjustifiable litigation; and,
The interest in encouraging citizens to assist in law enforcement by bringing offenders to justice.

The following essentials, according to EdrisaSemakula V AG constitute the ingredients/elements of the Tort:

1. That the defendant instituted/instigated and continued a prosecution against the plaintiff.
2. That the prosecution ended in the plaintiff's favor.
3. That the defendant had no reasonable or probable cause.
4. That the defendant acted with malice.
5. That the plaintiff suffered damaged to his reputation, person or property.

In an action for Malicious Prosecution, the plaintiff must proof that the proceeding instituted against him were malicious without reasonable or probable cost and that it terminated in his favor and he has suffered damaged. To establish instigation of prosecution, the plaintiff must show that it was the defendant who was actively instrumental in setting the law in motion against him. To prosecute in this context means to set the law in motion whereby an appeal is made by the defendant to some person with judicial authority in regard to the matter in question. Thus, merely reporting a matter to the authority is not enough, except when the defendant knowingly makes a false accusation to the police or a judicial officer with the result that an innocent man is sent for trial. It is no defence that the prosecutor withdrew the charge before summons or warrant was issued by the court.

Secondly, favorable termination of the prosecution can be described as trial which came to an end without conviction being pronounced. The underlying principle is that a man is deemed to be innocent until he is proved innocent. So what is required is not a judicial determination of his innocence; but merely, absence of judicial determination of his guilt. The requirement is satisfied if;

1. He is discharge on merit;

The plaintiff was convicted in a lower court; but, his conviction was quashed on appeal because of irregularity of procedure;

2. Where the plaintiff was acquitted of the charge in question but convicted of a

lesser offence;

3. Where the plaintiff was acquitted on technicality such as a defect in the indictment;

4. Where the prosecutor discontinued the proceeding or withdrew the charge even without prejudice to the right to recommence;
5. Where the AG enters a *nolle prosequi* staying further proceedings on the indictment; and,
6. Where the charge was struck out for want of prosecution or lack of diligent prosecution.

Thirdly, in **Hicks v. Faulkner**, Hawkins J. defined reasonable and probable cause as an honest belief in the guilt of the accused based upon full conviction founded upon reasonable grounds of the existence of a state of circumstances which assuming them to reasonably lead any prudent and conscious man placed in the position of the accused to the conclusion that the person charged was probably guilty of the crime imputed. Reasonable and probable cause entails the defendant having in his position as a reasonable and sane person a set of facts which to an ordinary man will lead to the conclusion that the plaintiff has committed a criminal offence. It is for the plaintiff to establish the absence of reasonable and probable cause not for the defendant to establish its presence. The test is objective and subjective.

Fourthly, Malice exists unless the predominant wish of the accuser is to vindicate the law. It



includes any improper motive or purpose or any motive other than that of simply instituting prosecution for the purpose of bringing a person to justice. It is wider than spite or ill will and desire for vengeance. Examples of an improper purpose amounting to malice are:

Where a landlord institutes criminal proceedings against his tenants as a device to procure the latter's eviction from the premises and,

Where a prosecution is brought against the man in order to punish him for having given evidence on a previous occasion:

No matter how malicious the defendant may have been, he will not be liable for malicious prosecution if he had reasonable and probable cause for believing in the guilt of

the plaintiff. On the other hand, the absence of reasonable and probable cause is in itself sufficient evidence of malice, especially in those cases where there is sufficient evidence that there

was no genuine belief in the complaint made. However, honesty of belief must not be confused with honesty of motive.

This tort is not actionable *per se* and in *Savile v. Roberts*, it was held that damages may be claimed in an action under three heads;

1. Damage to property
2. Damage to person
3. Damage to reputation

To find an action for damages for malicious prosecution, based on criminal proceedings the test is not whether the criminal proceedings have not reached a stage at which they may be correctly describe as a prosecution; the test is whether such proceedings have reached a stage at which damage to the plaintiff occurs. For example, without issuing summons or a warrant the Magistrate inquired into the merit of the charge in open court and eventually dismisses the complaint. Damage to person is established where the prosecution caused the plaintiff to be threatened with imprisonment and damage to property relates to the cost incurred by the plaintiff in defending the charge.

Lastly, in order to show damage to fame, the plaintiff must show that the charge was necessarily and naturally defamatory (moral stigma). Damage to fame is establish where the plaintiff is wrongly accused of traveling on a bus without paying the fair, since the accusation implied that he was a dishonest person and a cheat. Also, in **Yeboah v. Boateng**, there was damage to fame where a charge of extortion was brought against the paramount chief. But there will be no such damage where a landlord is prosecuted for having failed to carry out a statutory duty to cleanse his tenant's room: *Witten v. Bailey*; since the charge does not necessary carry a defamatory imputation, nor for the same reason will there be damage to fame where the plaintiff is prosecuted for riding a bicycle without a rear light or for pulling the alarm lever in a train without lawful excuse: *Berry v. British Transport Commission*.

DEFENCES TO TRESPASS TO PERSON

CONSENT

Consent may be given expressly by words or be implied from conduct.

A person is deemed to consent to a reasonable degree of physical contact as a result of social interaction (see *Collins v Wilcock*, above).

Those who take part in sports also consent to a reasonable degree of physical contact during the course of play, i.e. within the rules, even to the risk of being unintentionally injured.

However, there can be no consent to deliberate acts of violence (*R v Billingham* [1978] Crim LR 553).

What is meant by 'informed consent' and does English law recognise such a doctrine? Informed consent is the notion that consent is not valid unless all the risks of a surgical procedure have been explained. A person may not bring an action, in trespass or negligence, on the ground that they had not been informed of the potential consequences.

The issue in trespass is whether the patient consented to what was being done, and the issue in negligence is whether the patient should have been informed of the risks.

Every adult has the right to refuse medical treatment even if it will result in permanent injury or even death. However, a person may be deprived of his capacity to decide either by long term mental incapacity or temporary factors such as unconsciousness or confusion or the effects of fatigue, shock, pain or drugs. In such a case, it is the duty of the doctors to treat him in whatever way they consider, in the exercise of their clinical judgment, to be in his best interests.

LAWFUL ARREST

The powers of arrest, exercisable by a constable or a private citizen, are contained in the Criminal Procedure Code. An arrested person must be told, as soon as is practicable, that he is under arrest; and the grounds for the arrest. Private Citizens making an arrest must, as soon as is reasonable, hand the arrested person over to the police. Only reasonable force may be used to effect an arrest.

The police must not act unlawfully. See: *Collins v Wilcock* [1984] 1 WLR 1172

SELF DEFENCE

It has long been an established rule of the common law that a person may use reasonable force to defend himself, another person, or his property from attack. What is reasonable force being a question of fact in each case.

A person may make a mistake as to their right to self-defence. In such a situation, the criminal law allows a defendant to be judged on the facts as he honestly believed them to be: *R v Williams (Gladstone)* (1984) Cr App R 276 and *Beckford v R* [1988] AC 130.

NECESSITY

In *Re. F*, a case concerning when medical treatment can be justified when given without consent, Lord Goff having explained public necessity and private necessity stated:

"There is, however, a third group of cases, which is also properly described as founded upon the principle of necessity and which is more pertinent to the resolution of the problem in the present case. These cases are concerned with action taken as a matter of necessity to assist another person without his consent. To give a simple example, a man who seizes another and forcibly drags him from the path of an oncoming vehicle, thereby saving him from injury or even death, commits no wrong. But there are many emanations of this principle, to be found scattered through the books".

Lord Goff went on to say that the present case was concerned with action taken to preserve the life, health or well-being of another who is unable to consent to it. The basic requirements, applicable in these cases of necessity, were "not only (1) must there be a necessity to act when it is not practicable to communicate with the assisted person, but also

(2) the action taken must be such as a reasonable person would in all circumstances take, acting in the best interests of the assisted person".

Mistake

Unavoidable mistake (accident) can amount to a defence when the mistake negates the required element of intention—or, in other words, when the person did not intend the consequences of his or her act. So, for example, a person had no intention of coming into contact with another person but accidentally did so, then there is no battery. Say a police officer mistakenly believes that a felony has been committed and the officer arrests a person whom he/she reasonably believes to have committed the felony. The mistake would excuse the officer from battery or false imprisonment. This was decided

in *Beckwith v Philby* (1827) 6 B & C 635; 108 ER 585.

However, it is no defence to say that the intended consequences of the act were somehow innocent or had a legal effect that was different from the effect which the defendant assumed. For example, suppose a shopkeeper strikes a child on the assumption that the act is within her lawful authority. The shopkeeper clearly intended the consequences but she is mistaken about the legal effect of the act and her legal right to do it. She did not intend to do something that was unlawful perhaps. But that sort of mistake is no defence to battery or assault or, indeed, to any form of trespass. Or suppose that a police officer has a valid arrest warrant but arrests the wrong person.

The mistake will be no defence because the officer actually intended to apprehend the person in question.

Unfortunately, the position is rather confused because of the seemingly artificial distinctions between mistake and accident. Unavoidable mistakes often appear as innocent as do the production of accidental (unintended) results. Hence whilst the distinction still appears as a result of the historical development of tort it often appears to have little justification as a matter of policy.

Week 7: TRESSPASS TO LAND



Trespass is an unlawful interference with one's right to property

The tort of trespass to land (trespass quareclausumfreigit) consists in the act of Entering upon land in the possession of the plaintiff, or Remaining upon such land, or Placing or projecting any object upon it – in each case without lawful justification.

Trespass to land, like all other forms of trespass, is actionable per se without any proof of damage and independently of any intention to trespass (i.e. innocent straying or loss of way is no defence). Every invasion of property be it ever so minute, is a trespass.

Entry upon the land is the most obvious instance but others are:

1. Throwing objects onto the land;
2. Driving nails into a wall;
3. Remaining after the determination of a license to enter; and
4. Using a right of entry for purposes other than that for which it was granted.

Trespass by Remaining on Land

Every person who has lawfully entered on land in the possession of another commits a trespass if he remains there after his right of entry has ceased. To refuse to leave the plaintiff's land or vehicle is as much a trespass as to enter originally without a right. Thus any person who is present by the leave and licence of the occupier may, as a general rule, when a licence has been terminated, be sued or ejected as a trespasser, if after request and after the lapse of a reasonable time he fails to leave the premises. A reasonable degree of force may be used to control the movements of a trespasser or to eject him.

Continuing Trespass

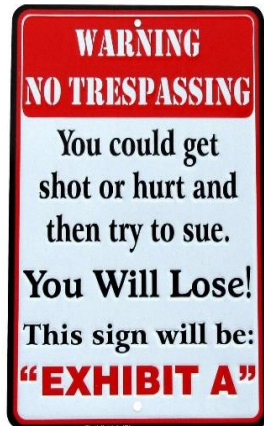
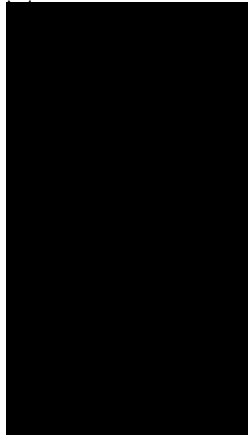
The continuance of a trespass gives a fresh cause of action from day to day and the party whose right is infringed may bring successive actions so long as it continues. Trespass by way of personal entry is a continuing injury, lasting as long as the personal presence of the wrong doer and giving actions *de die in diem* so long as it lasts. The same characteristic belongs in law even to those trespasses which consist in placing things upon the plaintiff's land. Such a trespass continues until it has been abated by the removal of the

thing which is thus trespassing; successive actions will lie from day to day until it is so removed.

In the case of **HOLMES V. WILSON (1839) 10 A & E 503**, trustees of a turnpike road erected supporting structures on the Plaintiff's land. The Plaintiff sued but settled for a sum in full satisfaction. Later, the Plaintiff called on the Defendants to remove the buttress and

sued them when they refused. It was held that the Defendants were liable for the continuing trespass.

Actions Amounting to a



A. Trespass on the High Way The owner of land adjoining a highway is the owner of the soil up to the middle. Improper use of the highway is actionable by him as a trespass. In the case of **HICKMAN V. MAISEY** (1900)

1 Q.B. 752. the defendant walked to and from on the highway spying on racehorse trials taking place on The Plaintiff's land. His actions were held to be tantamount to trespass.

B. Trespass by Placing Things on Land

It is a trespass to place anything upon the plaintiff's land or to cause any physical object or noxious substance to cross the boundary of the plaintiff's land, or even simply to come into physical contact with the land, though there may be no crossing of the boundary: for example, to cause a creeper to grow upon it, or to lean a ladder, planks or a shed, or to pile rubbish against it.

C. Trespass Beneath and Above the Surface

In general he who owns or possesses the surface of land owns or possesses all the underlying strata also. Any entry beneath the surface, therefore, at whatever depth, is an actionable trespass. It is commonly said that the ownership and possession of land bring with them the ownership and possession of the column of space above the surface *ad infinitum*. The landlord owns the land from beneath the surface and above (*cujus est solum, ejus est usque ad coelum et usque ad inferos* – 'whose is the soil, his is also the heavens').

Whilst entrance under the surface of another's land is trespass, it is doubtful how far entry above the land without actual contact is actionable. It would appear that whereas temporary intrusions at a high level are not actionable, more permanent intrusions at a

low level are not actionable.

In the case of **KELSEN V. IMPERIAL TOBACCO CO. LIMITED (1957) 2 Q.B. 334**,

an advertising sign projecting into airspace over single storey shop was held to be a trespass, not mere nuisance.

No action for trespass or nuisance lies by reason only of the flight of aircraft over any property at a height above the ground, which having regard to all the circumstances of the case is reasonable or in respect of noise or vibration from the aircraft on certain aerodromes, provided there is no breach of statutory regulations.

However, the owner is liable without proof of negligence or intention for any material damage caused to persons or property in taking off, landing or flight (subject to maximum scale except in cases of willful misconduct).

Statutory provisions play a major role in this regard and thus, an affected party has a right of indemnity against the person who caused the damage in certain cases.

Trespass Ab Initio

A person who enters upon the land of another with the owner or occupier's permission is not a trespasser but a licensee. However, a licensee who lawfully enters the land of another but subsequently commits a misfeasance whilst on the premises is a trespasser ab initio. In the case of **THE SIX CARPENTERS (1610) 8 Rep. 146 or 4 Cox Rep. 432**, six carpenters went into an inn in Cripplegate and, having consumed a meal of wine and bread, refused to pay for it. Their right to enter was conferred by law, the place being an inn. It was held that they were not liable because their act was nonfeasance, not a misfeasance. Their complaint related to something they had not done, i.e. they had not paid, and trespass ab initio (i.e. a trespass as if the original entry had been wrongful) depends upon misfeasance.

An act of misfeasance by a person who has entered on land of another by authority of the law revokes the authority, and that person becomes liable in trespass as if the original entry has been wrongful. Examples would be theft by a hotel guest.

WEEK 8: TRESPASS TO GOODS/CHATTELS

A trespass to goods/chattels is one who takes the goods or chattels of another and uses them



without the owner's consent. This is tantamount to the offence of theft in criminal law. The tort is committed by way of any wrongful interference with the goods in another's possession. It is actionable per se (i.e. actionable as a trespass, without proof of damage).

Actual physical contact is necessary; e.g. wrongfully driving cattle away is trespass. Possession is the essence of the right; even wrongful possession is

sufficient against anyone but a person with a better title.

The case of **WILSON V. LOMBANK LIMITED [1963] 1 W.L.R. 1294**. A purchased a car from B, who had no title to it. C, who was not the owner but believed himself to be, removed it. It was held that C was liable to A in trespass.

Conversion

A person entitled to possession of goods can maintain an action for conversion against anyone doing any act which involves a denial of his right to that possession. The same act is often, but not always both a trespass and a conversion.

The case of **FOULDS V. WILLOUGHBY [1841] 8 M. & W. 540** is authority. The Defendant refused to take the Plaintiff's horses on his ferry, and put them on shore. This was held to be trespass but not conversion.

Acts of Conversion

The following are the acts of conversion:

1. Stealing the Plaintiff's goods ;
2. Selling them;

3. Receiving them as a purchaser;
4. Destroying them or otherwise denying the Plaintiff's right to them.

In the case of **OAKLEY V. LYSTER (1931) 1 K.B. 148**, the Plaintiff leased land and dumped material there. The Defendant acquired freehold and wrongfully claimed the material was his. He used some of the material himself and his solicitors warned the Plaintiff not to enter on the land. The Defendant was held liable for conversion.

Detinue

This tort consists in the wrongful retention of the possession of a chattel. Over keeping of a hired chattel is an example but for the tort to be committed, there must be demand by the plaintiff and / refusal to surrender the chattel by the defendant.

Who can Sue and can be sued?

Under trespass, the person who can sue is the person in possession and can thus maintain an action in trespass.

Therefore, an owner who is out of possession cannot sue, but if he subsequently recovers possession, it relates back to the time the right of entry accrued, and he can sue for trespasses committed in the interval. Further a landlord can sue in trespass only if he can prove more than a mere trespass – viz actual harm done to the property, of such sort as to affect the value of his reversionary interest in it.

Again, a person with defacto possession can maintain trespass against anyone except the person with the right of entry or present possession. In the case of **HEMMINGS V. STOKE POGES GOLF CLUB (1920) 1 K.B. 720**, the Plaintiff was employed by the club and occupied a cottage belonging to it. Later, he left the Defendants' service and was called upon to give possession. On refusal, he and his property were ejected with no more force than necessary. It was held that the Defendants were not liable for assault or trespass.

A person wrongfully retaining possession cannot be sued as a trespasser, but the person entitled to possession may bring an action of ejectment and claim mesne profits, i.e., in effect, the loss sustained by being kept out of possession.

Co-tenants or joint tenants cannot sue each other in trespass on the land they occupy because both of them are entitled to possession of the land as a whole. An action by a co-

tenant or joint tenant is only possible if the defendant's act is intended to completely oust the plaintiff from the land or destroying or wasting of the common property.

DEFENCES: CONSENT; LAWFUL AUTHORITY; NECESSITY

The following are the defenses that the Defendant may plead:

- Authority of the law, e.g., a policeman preventing a breach of peace; a landlord detaining for rent; a bailiff executing process. In the case of **THOMAS V. SAWKINS [1935] 2 K.B. 249**, a Police Constable insisted on being present as a private meeting where they had reasonable grounds for thinking a breach of the peace might otherwise be committed. It was held that no trespass was committed;
- Abatement of a nuisance;
- Retaking of goods;
- Necessity. In the case of **ESSO PETROLEUM CO. LTD v. SOUTHPORT CORPORATION (1956) A.C. 218**, the captain of an oil tanker lay the ship aground and in order to save the ship and crew, large quantities of oil were discharged. The oil was carried by a tide onto the shore. The court held that necessity was a defence to the claim in trespass and in nuisance.
- License, which is 'that consent which, without passing any interest in the property to which it relates, merely prevents the acts for which consent is given from being wrongful. After revocation of a license the licensee becomes a trespasser, but he be allowed a reasonable time to leave and remove his goods. A license coupled with an interest is irrevocable.

REMEDIES

- Eject the trespasser, using no more force than necessary;
- Re-enter his land. But he must do so peacefully, otherwise he commits a crime;
- Obtain an injunction to restrain a continuing, or to forbid a threatened, trespass;
- Sue for damages and mesne profits (i.e. action for damages in respect of all loss suffered by the plaintiff during the period of his dispossession of the land);
- Bring an action of ejectment or recovery of the land;

WEEK 9: DEFAMATION



In law every person is entitled to his good name and to the esteem in which he is held by others. It does not matter whether the 'person' is a natural or artificial one e.g. a company. Such a person has a right to claim that his reputation shall not be sullied by defamatory statements made about him to a third person without lawful justification.

In Uganda, S.180 (1) of the Penal Code Act defines a defamatory matter as, "... matter likely to injure the reputation of any person by exposing that person to hatred, contempt or ridicule or likely to damage any person in his or her profession by an injury to his or her reputation." According to the "Essential Law Dictionary"⁴, defamation refers to an intentional publication or public statement of false information that damages someone's reputation. In other words, a defamatory statement has the effect of lowering the reputation of the affected person in the eyes of the right-thinking members of society.

In Francis Lukooya Mukoome & another v The Editor in Chief Bukedde Newspaper & 2 others CIVIL SUIT NO.351 OF 2007, Justice Yokoram Bamwine, writes that;

"Defamation is something more than an insult or derogatory comment. It is not capable of exact definition. How far a person is affected by unkind words will depend not just on the words used, but also on the people who must then judge him. That is why communication to the plaintiff alone will not suffice. (It) is an

injury to one's reputation and reputation is what other people think about a man and not what a man thinks about himself.”

In **Benue Printing & Publishing Corp. v. Gwagwarda (1989) 4 NWLR (Pt. 116) 439**, the Supreme Court defined the tort of defamation as follows; “defamation consists of any imputation which may tend to lower the plaintiff in the estimation of right thinking members of the society generally, cut him off from society or expose him to hatred, contempt or ridicule”. A defamatory imputation may allege criminality, dishonesty or cruelty. A statement may also be defamatory if it is made with a desire to ridicule the plaintiff.

A defamatory statement may not necessarily take the form of written or spoken words; it may also consist of carvings, paintings, effigies or gestures. It is immaterial that the person to whom the defamatory statement was made did not believe it to be true. What is important is that the statement has the tendency to lower or injure the reputation of the plaintiff.

An action for defamation does not survive the death of the parties. Thus, an action for defamation cannot be maintained or continued by the relatives of a dead party or the personal representatives of the deceased party including executors, trustees or administrators of his estate.

Also, a plaintiff in an action for defamation must be a legal person. But, in the case of an artificial person; the action can only be competent where the offending statements allege dishonest conduct or mismanagement reflecting on the trade or business reputation of the company.

The standard used in determining whether or not a statement is defamatory is that of right thinking members of the society. The meaning of the phrase „right thinking members of the society“is in general terms and not in particular terms. Accordingly, it connotes the society generally and not a section of the community. Nevertheless, it includes the plaintiff's colleagues, business associates and church members.

There are two types of defamation; namely, libel (written & permanent) and slander (spoken & transient). Both are torts and crimes. However, libel is defamation in permanent form; while slander is defamation in transient form. Thus, defamatory words contained in the print, broadcast and social media amounts to libel since they are in permanent form. It is immaterial that the defamatory material in permanent form

was read to an audience.

Again, libel is actionable *per se*, that is without proof of actual damage. A judicial re-echo of this position can be found in the case of **Ejabulor v. Osha (1990) 4 NWLR (Pt. 148) 1 at 15**, where it was held that questions relating to proof of damage are totally alien

to an action for libel. Moreover, if the plaintiff in an action for libel proves that he has suffered actual damage, he will be entitled to recover a further sum in addition to the general damages.

On the other hand, to succeed in an action for slander, the plaintiff must prove actual damage. In other words, no damages are recoverable merely for loss of reputation by reason of the slander. The plaintiff must prove loss of money or of some temporal or material advantage estimable in monetary terms. However, this position is not sacrosanct. There are exceptional instances in which slander is actionable without proof of special damage. These are;

- a. where the slanderous words complained of constitute an imputation of crime, punishable by imprisonment at least in the first instance, against the plaintiff;
- b. where the slanderous words contain an imputation that the plaintiff is suffering from a contagious or infectious disease, such as leprosy;
- c. where the slanderous words contain an imputation of unchastity, promiscuity and(or) adultery in the case of a lady or woman;
- d. where the words complained of are calculated to disparage the reputation of the plaintiff especially as regards an office presently held by him or as regards his lawful profession, calling, vocation, trade or business, by alleging that he is dishonest, unfit, incompetent or unqualified;

Furthermore, the tort of defamation seeks to protect a person's reputation (good name) from unjustified and unwarranted attack either by written or spoken words of others. Nevertheless, the court always strikes an acceptable balance between the protection of a person's reputation and the exercise of freedom of expression or speech. Thus, not all statements that affect a person's reputation will be regarded as defamatory. Mere vulgar abuse or insult (that is to say words or conduct which affect a man's dignity) does not amount to defamation. Indeed, the courts have tendered to take judicial notice of the fact that it is not uncommon in social relationships for people to abuse each other in exchange of hostility.

The implication of this is that if the vulgar or insulting words or statements are made deliberately and not in an occasion of a quarrel between the parties, an action for defamation (slander) is maintainable. In the same vein, the courts would be reluctant to

uphold the plea of vulgar abuse if the alleged defamatory words are written, since in such circumstances, the defendant would have had enough time to reflect upon what he had written and

published. This is consistent with the position of the law in **Benson v. West African Pilot**

Ltd., (1966) NMLR 3 where a distinction was drawn between a spoken vulgar abuse which is not actionable and a written one which is actionable.

The foregoing apart, a plaintiff must satisfy certain fundamental requirements before his action in defamation (whether libel or slander) can succeed. These essential requirements or ingredients are;

- a. that the words or statement was defamatory;
- b. that the defamatory words referred to the plaintiff;
- c. that there was publication of the defamatory words to an audience;and,

- d. special damage, in the case of slander, except the case of the plaintiff falls under the exceptions.

These elements will now be briefly examined seriatim.

Defamatory Words

A statement is defamatory when it is false and capable of lowering the reputation of the plaintiff in the estimation of the right thinking members of the society or cause him to be shunned and (or) avoided. The defamatory nature of a statement is measured by its tendency to incite adverse opinions against the plaintiff. Examples include calling the plaintiff a thief, insane, among others. A statement will still be defamatory even though the defendant did not intend to bring the plaintiff into hatred, ridicule or contempt. In other words, the meaning to be ascribed to a given statement is not necessarily that which the defendant ascribed to it when it was published. Additionally, apart from proving the defamatory words as primary or secondary evidence, it is equally mandatory to establish that the statements emanated from the defendant.

Statements may be divided into two classes for the purpose of determining their defamatory character. On the one hand are those that are *prima facie* defamatory and on the other hand are those that are *prima facie* innocent. A statement is *prima facie* defamatory when its natural, literal and ordinary meaning has a defamatory connotation. By „natural, literal and ordinary meaning“, we mean the meaning given to the statement by reasonable men of ordinary intelligence with ordinary man's general knowledge and experience of worldly affairs.

Conversely, a statement is *prima facie* innocent when its natural, literal and ordinary meaning is not defamatory. Nevertheless, a statement which is *prima facie* innocent may be capable of bearing a defamatory meaning having regard to the surrounding circumstances known to the person(s) who are the recipients of the publication. In such cases, the onus is on the plaintiff to explain the sense in which the words are understood which *ipso facto* qualifies them as defamatory, or else such words will be interpreted literally. This explanatory statement offered by

the plaintiff which indicates the extended or hidden defamatory meaning which an otherwise innocent expression/statement has is called an „Innuendo“.

Innuendos are of two types, namely; (a) true or legal innuendo and (b) false or popular innuendo. True or legal innuendo suggests that an ordinarily innocent statement has a defamatory meaning in relation to those to whom it is made due to the existence of certain facts known to such persons. The burden of proving this knowledge lies on the plaintiff who must equally prove the peculiar facts or special circumstances known to the recipients of the publication. In order to succeed, the innuendo established by the plaintiff must lead reasonable persons with knowledge of those facts and circumstances to come to the irresistible conclusion that the statement is defamatory. It is immaterial to the question of liability that the defendant is oblivious of the peculiar facts or circumstances making the seemingly innocent words defamatory.

On the other hand, false or popular innuendo is anchored on the inferences which reasonable members of the society would draw from the published statement. Here, the focus is on the implied meaning of the literally innocent statement being considered.

Relation of the Defamatory Statement to the Plaintiff

This is established if the plaintiff is mentioned by name (whether fictitious or fanciful) or described by means of peculiar attributes/qualities. The guiding principle is whether those who know the plaintiff can reasonably think that the defamatory words/statement referred to him/her. The intention of the defendant is immaterial. This is in tandem with the principle of law propounded in **Hulton & Co. v. Jones**, to the effect that even where there was no intention on the part of the publisher to defame the plaintiff, the action must nevertheless succeed once reasonable people who knew the plaintiff would think the words defamatory of him.

Also, the individual plaintiff can sue for redress in respect of a defamatory statement directed at a small group or limited class.

Publication of the Defamatory Words

It is trite law that a plaintiff in a defamatory action must establish that the defendant's defamatory statement was communicated or published to an audience. In **Ejabulor v. Osha**, the Supreme Court defined publication as "the making known of the defamatory matter after it had been written to a third party other than the plaintiff." However, the ideal publication is that meaningful to the recipient. In other words, the latter must be capable of the understanding and hearing the statement. Every competent repetition of a defamatory statement is a fresh publication and creates a fresh cause of action. The defendant is still liable in case where a third party intercepts the publication if it is established on the part of the defendant that the possibility of interception is reasonably foreseeable. In the case of a newspaper publication, it is usually the editors, printers, and publishers that are liable; not distributors, carriers or agents.

The following defenses are available in an action for defamation; namely,

- a. justification
- b. fair comment
- c. privilege
- d. consent
- e. apology

Anyone who is sued for defamation can raise any of the following defenses:

- That the alleged wrong doer was not the publisher of the statement;
- That the statement did not refer to the alleged victim;
- That the statement's meaning was not defamatory;
- That the statement was true;

- That the statement was fair comment on a matter of public interest.
- That the statement was made in the heat of an argument.

In other words, there are a number of defences available to a claim of defamation which includes justification, fair comment, privilege which may be either absolute or qualified."

I shall discuss these defenses below

1) JUSTIFICATION

According to the Black's Law Dictionary, "**Justification**' is defined "*explanation with supporting data. A maintaining or showing a sufficient reason in court why the defendant did what he is called upon to answer, particularly in an action of libel...*"

Justice Byamugisha (as she then was) In **BLAZE BABIGUMIRA VS HANNES BESIGYE HCCS NO 744 OF 1992 (un reported)** held, inter alia, that the defense of Justification means that the defendant is contending that the words complained of were true. The burden of is on the defendant to prove that in fact these words were true.⁷

Once this has been proved, it is then up to the plaintiff to challenge the truthfulness of the defendant's assertions. In **Francis Lukooya Mukoome & another v The Editor in Chief Bukedde News paper & 2 others CIVIL SUIT NO.351 OF 2007**, Justice Yokoram Bamwine, writes that;

"... when a party adduces evidence sufficient to raise a presumption that what he is asserting is true, he is said to shift the burden of proof, that is, his allegation is presumed to be true, unless his opponent adduces evidence that rebuts the presumption

Under a plea of justification, the onus is on the defendant to show that the alleged libel is true; in fair comment the onus is on him to show that the facts commented on are acknowledged to exist or are true. If the defendant brings evidence to prove the

facts commented upon to be true or acknowledged to exist, the plaintiff should be entitled to produce evidence that they are neither acknowledged nor true. But he cannot divide his proof, bringing forward part of his evidence in the first instance and more in reply.

However, it is important to note that the defence of justification is only relevant only where publication is proved and libel is established.

A defence of justification is therefore a complete bar to any relief sought by a party who complains of defamation. It is appropriately described in the Latin maxim: *damnum absque injuria*". Until it is clearly established that an alleged libel is untrue, it will not be clear that any right at all has been infringed.

It is important to note that whenever a defence of justification or qualified privilege is raised in a case of libel, the party raising the defence is understood to be admitting that he published the words complained of but contends that the words published are true and he is therefore not guilty of defamation. At common law, under a plea of justification, the defendant must prove the truth of all the material statements in the libel. There must be a substantial justification of the libel.

2) FAIR COMMENT

According to the Black's Law Dictionary, **Fair comment** is "*a term used in the law of libel applying to statements made by a writer in an honest belief of their truth, relating to official acts, even though the statements are not true in fact*". *Defense of fair comment is not destroyed by circumstance that jury may believe that the comment is logically unsound but it suffices that a reasonable man may honestly entertain such opinion, on facts found.*"

Fair Comment must be based on facts truly stated, must not contain imputations of corrupt or dishonourable motives except as warranted by the fact, and must be honest expression of writer's real opinion.

Fair comment is available only in respect of expressions of opinions which are based on facts which are proved true and on statements of fact not proved true but which

were made on a privileged occasion. When a Defendant avers as his defence that the comment is a fair

one, he is saying no more than that the story was based upon true facts, which were in existence when the comment was made.

This is so because before a comment can be said to be fair the truth of the facts upon which it is predicated must first be established - - - For the law does not permit a person to invent untrue facts or stories about a man and then comment upon them. In other words, the defence of fair comment will avail the Defendants if they can show that they had only, in good faith expressed their opinion based on facts truly stated on a matter of public interest.

In Francis Lukooya Mukoome & another v The Editor in Chief Bukedde News paper & 2 others CIVIL SUIT NO.351 OF 2007, Justice Yokoram Bamwine, writes that;

“(Fair comment) is a defense to an action for defamation that the statement made was a fair comment on a matter of public interest. The facts on which the comment is based must be true and the comment must be fair. Any honest expression of opinion, however exaggerated, can be fair comment but remarks inspired by personal spite and mere abuse are not. (However), the judge decides whether or not the matter is one of public interest.

In order that a Defendant will be availed of defence of fair comment, the following conditions must be present:-

- (1) It must be based on facts truly stated;
- (2) It must be honest expression of the writer's real opinion;
- (3) It must not contain insinuations of corrupt or dishonourable motives on the person whose conduct or work is criticized save in so far as such imputation warranted by facts.

Thus, it is important to state that a plea of fair comment succeeds as defence if the facts relied on by the defendant are sufficient to justify the statement or publication that the plaintiff finds to be libelous. The facts must be the truth.

3) PRIVILEGE

According to the Black's Law Dictionary, **Privilege** is *an exemption from liability for the speaking or publishing of defamatory words concerning another, based on the fact that the statement was made in performance of a political, judicial social or personal duty.*

Privilege is either absolute or conditional. The former protects the speaker or publisher without reference to his motives or the truth or falsity of the statement. This may be claimed in respect, for instance, to statements made in legislative debates, in reports of military officers to their superiors in the line of their duty, and statements made in legislative debates, in statements made by judges, witnesses, and jurors in trials in Court.

Conditional or Qualified Privilege will protect the speaker or publisher unless actual malice and knowledge of the falsity of the statement is shown. This may be claimed where the communication related to a matter of public interest or where it was necessary to protect one's private interest and was made to a person having an interest in the same matter.

Qualified privilege is a defence to an untrue publication. It can only be claimed however when the occasion of the publication is shown to be privileged.

In PULLMAN V. HILL LTD. (1891) 1 QB, it was held that "*An occasion is privileged when the person who makes the documentation has a moral duty to make it to the person to whom he does make it and the person who receives it has an interest in hearing it. Both these conditions must exist in order that the occasion may be privileged.*"

NB: According to section 183(1) of the penal code, "The publication of defamatory matter is absolutely privileged, and no person in any circumstances

shall be liable to punishment under this code in respect of such publication, in any of the following cases-

- a) If the matter is published by the President, the Government or Parliament;
- b) If the matter is published in Parliament by the Government or by any member

of that Parliament or by the Speaker;

- c) If the matter is published by order of the President or the Government;
- d) If the matter is published concerning a person subject to military, naval or air force discipline for the time being and reduces to his or her conduct as a person subject to such discipline, and is published by some person having authority over him or her in respect of such conduct and to some person having authority over him or her in respect of such conduct;

Additionally, section 183(2) notes that,

“where a publication is absolutely privileged, it is immaterial for the purposes of this chapter where the matter is true or false and whether it is or is not known or believed to be false and whether it is or is not published in good faith but nothing in this section shall exempt a person from any liability to punishment under any other chapter of this code or under any other written law in force in Uganda.”

S.185 of the penal code emphasizes that; “a publication of defamatory matter shall not be deemed to have been made in good faith by a person, within the meaning of section 184 if it is made to appear either-

- a) That the matter was untrue and that (the defendant) did not believe it to be true;
- b) That the matter was untrue and that (the defendant) published it without having taken reasonable care to ascertain whether it was true or false; or
- c) That in publishing the matter, (the defendant) acted with intent to injure the person defamed in a substantially greater degree or substantially otherwise that was reasonably necessary for the interest of the public or for the protection of the private right or interest in respect of which he or she claims to be privilege.”

It seems to me that three elements of qualified privilege emerge and they are:

- (1) The occasion for making it must be fit.
- (2) The matter must bear reference to the occasion, and
- (3) The words complained of must be published from right and honest motives."See *Horrocks v. Lowe* (1975) AC 135.

I pause to say that any privilege that attaches to an occasion on which defamatory words are published by one person to another is the privilege of the publisher alone. The person to whom it is published needs no privilege, as he commits no tort. It follows that, a defence of qualified privilege, if it is not characterised by gross and unreasoning prejudice, is a complete defence.

In bringing an action for defamation where such statement was made on an occasion of qualified privilege, there must exist defamation where such statement was made on an occasion of qualified privilege. Where the defence of qualified privilege or fair comment is pleaded, and the plaintiff has served a reply alleging express malice, the condition of mind of the defendant when he published the words is a matter directly in issue

It is pertinent to note that where defamatory words are published more extensively than the occasion requires, or maliciously published, the defence of privilege or fair comment are forfeited. Qualified privileges, means that the immunity from defamation suits is conditional and must thus not be abused. Abuse typically occurs where the defendant had no reason to make the statement to the recipient, or if he or she made the statement, it was out of spite or ill will.

CONCLUSION: From all that has been stated above, one must note that in order to succeed in action against defamation, the essential elements of the defence must be strictly adhered. NB: The Dead Can't Be Defamed (or Defame): Although the tort is

one of injuring reputation, this only applies to the reputations of the living.

WEEK 10: VICARIOUS LIABILITY



1.0 Definition

It is a general principle of law of Torts that one is personally liable for the torts he or she commits, this falls under the principal liability; however there are exceptions to this rule and vicarious liability falls within the parameters of the exceptions.

Vicarious liability is that liability that a supervisory party such as an employer bears for the actionable conduct of a subordinate or associate such as an employee based on the relationship between the two parties. It is a legal doctrine that assigns liability for an injury to a person who did not cause the injury but who has a particular legal relationship to the person who did act. Legal relationships can include the relationship between parent and child, wife and husband, owner of a vehicle and driver, and employer and employee.

2.0 HISTORICAL OUTLINE

Vicarious liability became established during the period of Industrial – Capitalism (1700- 1870). This period was distinct from those before it because it was characterized by commodity production based on wage labor and private ownership of means of production. The aim of production was profit and accumulation of surplus value. This was because torts in industries were more likely to be committed by employees than employers.

The early medieval idea of holding a master responsible for all his servants' wrongs gave way, with the passing of the feudal system, to the principle that his liability be limited to

the particular acts he had ordered or afterwards ratified. As long as this command theory prevailed, the master's liability could, with some semblance to reality, be justified by reference to that hard worked maxim, "qui facit per alium facit per se". But the expansion of commerce and industry, which set in towards the end of the 17th century necessitated an adjustment of this narrow rule. The change from home industry to ever large units of production vitiated the assumption that a master could exercise a close control over his servants, and the increasing hazards arising from modern industry necessitated a wider range of responsibility than that previously countenanced. After some experiment with the theory of implied command, the basis of the modern principle of liability for all torts committed by the servant "*in the course of his employment*" was finally laid in the earlier part of the 19th century. This formula represented a compromise between two conflicting policies. On one end, the social interest in furnishing an innocent tort victim with recourse against a financially responsible defendant, on the other, a hesitation to foist any undue burden on business enterprise.

Nevertheless the principle of primary liability was for the time retained and in form at least the question was still whether the master could be shown to have been a direct participant in the tort as having impliedly commanded it. The relationship of master and servant was not itself a legal requirement of liability, it was merely a factual element in the case from which a command or "authority" could be implied, and other relationships might serve the same purpose equally well.

In East Africa its trite law that the majority of the countries fall under Common law "the God father" of the law of Torts. With the reception clause, laws that were applicable in United Kingdom at a time were to be applicable in East Africa subject to circumstances in East Africa.

3.0 ELEMENTS CONSTITUTING VICARIOUS LIABILITY

Having analyzed what vicarious liability is, dug deep in its historical developments it is of the essence to discuss the various elements that constitute vicarious liability in East Africa.

(1) Existence of Master – Servant Relationship.

For an employer to be held liable vicariously there must be proof of a relationship of master / Servant. Evidence of such a relation is a contract of service and not a contract for services for independent contractor, which defines the master, normally as the appointing authority of the servant and defines the type of work and how it is to be performed In short V J. & W Henderson Ltd Lord Thankerton said that there are four indicia of a contract of service

- (1) The employer's power of selection of his servant.
- (2) The payment of wages or other remuneration
- (3) The employer's right to control the methods of doing the work.
- (4) The employer's right of suspension or dismissal.

Various tests have been developed to ascertain whether the relationship of the partner is in essence a contract of service, these include;

Control test, this test helps draw a clear cut distinction between contracts of service from a contract for services. In Collins v Hertfordshire, Hilbery J said: "The distinction between a contract for services and a contract of service can be summarized in this way: In one case the master can order or require what is to be done, while in the other case he can not only order or require what is to be done, but how it shall be done." But in Cassidy v Ministry of Health Somervell LJ pointed out that this test is not universally correct.

There are many contracts of service where the master cannot control the manner in which the work is to be done, as in the case of a captain of a ship. He went on to say: "One perhaps cannot get much beyond this 'Was the contract a contract of service

within the meaning which an ordinary person would give under the words?"

An employee is a servant if he is “subject to the command of the master as to the manner in which he shall do his work” while “an independent contractor undertakes to produce a given result but is not, in actual execution of the work, under the order or control of the person for whom he does it” an employee is a servant if his superior is in position to tell him not only what to do, but how to do it. It is of the essence to understand that this test is the product of economic conditions in which the employer had the competence to instruct the laborer on the techniques of performing his work. But in technological developments since the late 19th Century and the corresponding changes in the structure of modern business, combined with the trend of professionals entering full time salaried employment instead of private practice, have belied this assumption, and it is found increasing difficult to apply the control test as a meaningful working rule to many modern situations. More often than not, the skilled craftsman or professional worker is engaged for the very reason that he possesses the “know – how” which his employer lacks. Industrial relations have changed to the point where even a crane driver’s assertion “I take no orders from anybody” is regarded as the normal attitude of a skilled man who knows his Job and will carry it out in his way per Lord Simonds in *Mersey Docks V Coggins* “this transformation has necessarily involved an adjustment of the control test, which is reflected less in verbal formulation than in its application.

First, it is no longer asked whether any actual supervision was in fact exercised or indeed possible, but whether ultimate authority over the person in the performance of this work resided in the employer so that he was subjected to the latter’s order and directions.

Secondly, the approach has become more flexible the search for the seat of control must take into account a variety of factors, such as the power of dismissal, whether the employee has to furnish his own equipment, to select his own subordinates, or

even delegate the work

Organization test / integration test

It has also been recognized that, given the increasing technical complexity of modern industry and commerce, and the greater likelihood that the employee will be sought out because it is he or she that has the expertise, the control test can be problematic. Thus, while it remains a starting point, and is sufficient to dispose of many cases, it has been supplemented or supplanted as required. In some instances, an "organization test" has been applied. The test first asks this question: was he in business on his own account, assuming the risks and responsibilities as well as its benefits of the enterprise? The second question test asks: was he would be servant part of his employer's organization? Was his work subject to coordinational control as to the "where" and "When" rather than the "how"? In *Stevenson V MacDonald*, Lord Denning put it. "It is often easy to recognize a contract of service when you see it, but difficult to say wherein the difference lies. A ship's master, a chauffeur, and a reporter on the staff of a newspaper are all employed under a contract of service; but a ship's pilot, a taxi man, and a newspaper contributor are employed under a contract for services. One feature which seems to run through the instances is that, under a contract of services, a man is employed as part of the business, and his work is done as a an integral part of the business: whereas, under a contract for service, his work, although done for the business, is not integrated into it but is only accessory to it" work was to be part and parcel of the contract.

The entrepreneur Test

Control over the manner and means by which a worker is to perform his allotted tasks may be the relevant consideration in many cases, but does not comprehend all of those circumstances in which it will be determined that an employer/employee relationship exists. Further, with a view to pursuing the objectives of vicarious liability, the courts have been willing to apply a broad range of factors with respect to this issue. In a leading case, *Montreal v. Montreal Locomotive Works Ltd. et al*, Lord

Wright enunciated what has been described as the "entrepreneur test" which suggests that, besides control, other factors may demarcate the difference between employees and independent contractors. In

that regard, it is necessary to consider all aspects of the relationship, with the focus being on a determination of whose business it is. He stated (at p. 169):

...In earlier cases a single test, such as the presence or absence of control, was often relied on to determine whether the case was one of master and servant, mostly in order to decide issues of tortious liability on the part of the master or superior. In the more complex conditions of modern industry, more complicated tests have often to be applied. It has been suggested that a fourfold test would in some cases be more appropriate, a complex involving (1) control; (2) ownership of the tools; (3) chance of profit; (4) risk of loss. Control in itself is not always conclusive. Thus the master of a chartered vessel is generally the employee of the ship owner though the charterer can direct the employment of the vessel. Again the law often limits the employer's right to interfere with the employee's conduct, as also do trade union regulations. In many cases the question can only be settled by examining the whole of the various elements which constitute the relationship between the parties. In this way it is in some cases possible to decide the issue by raising as the crucial question whose business is it, or in other words by asking whether the party is carrying on the business, in the sense of carrying it on for himself or on his own behalf and not merely for a superior

MULTIPLE TEST

Over time the courts have realized that only one test isn't satisfactory enough and has produced confusing results. The multiple test seeks to consider whatever factors may be indicative of employment or self employment. In *Ready mixed concrete v Minister of pensions and National insurance*, the case involved who was liable for National Insurance contributions, the company or one of its drivers. Drivers were used under a new contract under which they drove vehicles in the company colors and logo that they bought on hire purchase agreements from the company. Under the contract they were also obliged to maintain the vehicles according to the set standards in the

contract. They were only allowed to use the Lorries on company business. Their contracted hours, however, were,

flexible and their pay was subject to an annual minimum rate according to the concrete hauled. They were also allowed to hire drivers from their place. It was held that the drivers were independent. McKenna J put it forward that three conditions should be met before an employment relationship is established; *the employee agrees to provide work or skill in return for a wage, the employee expressly or impliedly accepts that work will be subject to control of the employer, all other considerations in the contract are consistent with there being a contract of employment rather than any other relationship between the parties*

SELF CLASSIFICATION/INTENTION OF THE PARTIES

The intention of the parties recorded in the terms of their agreement, can also provide a useful guide as to whether there is a contract of service or a contract for service. However self classification is only decisive in relatively evenly balanced situations. The law is that true relationship of the parties is that of master and servant under a contract of service, the parties cannot alter the truth of that relationship by putting a different label upon it.

The court must look at the realities of the situation in order to determine whether the relationship of employer-employee in fact exists regardless of how the parties describe themselves. In *Young & Wood Ltd v West* the parties agreed that the worker should be treated as self-employed for reasons of tax and national insurance payments, the courts nonetheless held there to be a contract of employment.

BORROWED SERVANTS

The general rule is that if a borrowed servant in the course of performing the stipulated work, the employee injures someone, the general employer retains responsibility, unless he can establish that the effect of the transfer was to constitute his employee *pro hac vice*, Latin maxim meaning "for this occasion" or "for this event" the servant of the hirer.

It is often difficult to decide whose employee a person is when he is lent by his

employer to another. In *Mersey Docks and Harbor Board v Coggins and Griffith* the board owned many mobile cranes, each operated by skilled drivers who were engaged and paid by the

board. In the ordinary course of its business, the board hired out a crane to the respondents for unloading ship. The power to dismiss the driver remained with the board even though the contract provided that he was to be the servant of the hirers. While loading the cargo, the driver was under the immediate control of the hirers in the sense that the hirers could tell him which boxes to load and where to place them, but they could not tell him how to manipulate the control of the crane. A third party was injured by virtue of negligent handling of the crane by the driver. The House of Lords was called upon to decide whose servant he was at the time of the accident. It was held that the board was at page was solely liable.

The principal reason is that the general employer, unlike the hirer, has selected the servant for the task and thereby makes himself responsible for the manner in which the work is carried out.

The ultimate question is not what specific orders, or whether any specific orders, were given but who is entitled to give the orders as to how the work should be done. Unless there is that authority, the workman is not serving the hirer, but merely the interests of the hirer.

2. COURSE OF EMPLOYMENT

Unless the wrong done falls within the scope of the servants employment the employer is not liable at common law. The Act will be within the scope of the employment if it has been expressly or impliedly authorized by the employer or sufficiently connected with the employment that it can be regarded as an authorized, or is necessarily incidental to something which the servant is employed to do. *The underlying idea is that the injury done by the servant must involve a risk sufficiently inherent in or characteristic of the*

employer's business that it is just to make him bear the loss.

While the principle is easily stated, its application can be difficult. Tortious conduct

can range from that which is expressly condoned or authorized by the employer to that which is expressly prohibited and clearly outside the range of the employer's reasonable

expectation. While it is clear that there would be vicarious liability with respect to the former and not with respect to the latter, it is the conduct within those margins that creates the difficulty. As to where the courts draw the line, the traditional approach has been to distinguish between conduct which is said to be an "*unauthorized mode of committing an authorized act*" and that which is so unconnected to the employee's job as to be something apart from it. However courts have appeared to favor a test suggested by Salmond that the employer will be liable in two instances;

1. For a wrongful act that has been authorized by the employer.
2. For an act that, while authorized, was carried out in a manner unauthorized way.

AUTHORIZED ACTS

An employer then will inevitably be liable for the acts that he has expressly authorized, and, since an employee is only obliged to obey all reasonable and lawful acts, he could refuse to carry out tortious acts that the employer instructed him to do. The more difficult aspect of this rule is whether the employer can be said to have authorized the tortious act by implication and should therefore be liable. In *Poland v Parker* the employee was a carter. He assaulted a boy in order to stop him from stealing from his employer's wagon. The boy fell under the wagon and was injured as a result. The employer was held liable for the assault since the employee was only protecting the employer's property, which by implication he had authority to do. He was acting honestly and reasonably in protection of the employer's property. Lord Atkin explained "*any servant is, as a general rule, authorized to do acts which are for the protection of his master's property*"

AUTHORIZED ACTS CARRIED OUT IN AN UNAUTHORIZED MANNER

An employer can be liable for unauthorized acts under the following ways;

Where the employee carries out work negligently in *Century Insurance Co Ltd v*

Northern Ireland Transport Board a driver of a petrol tanker was delivering to a petrol station. In lighting a cigarette he carelessly threw down a lighted match causing an explosion. The

employer was still held liable since the driver was in the course of employment and merely doing his work negligently.

Where the employee gives unauthorized lifts contrary to instructions in *Rose V Plenty* a milkman continued to use a child helper despite express instructions for the employer not to allow people ride on the milk floats. When the boy was injured partly through the milkman's negligence his employer was held liable. The milkman was carrying out his work in an authorized manner. Lord Denning suggested that the employer be liable because they were benefiting from work undertaken by the boy. In his judgment Lord Denning identified that; "an employer's express prohibition of the doing of an act is not necessary such as to exempt the employer from liability, provided that the act is done not for the employee's own purpose, but in the course of his services and for his employer's benefit.

Common interest

In *UCB V Deo Kigozi*, an issue of common interest arose. It was held that the fact that the appellant and the CID officers had a common interest in recovering the money allegedly stolen by one John Bosco Semwogerere, was a common interest between the two parties. First, it put the appellant and the CID officers in a master – servant relationship second, the wrongful acts were committed by the CID in their endeavor to recover the money, which they had been employed to do. Therefore, the appellant could not deny liability as the assault, arrest and detention of the respondent was committed in furtherance of a common interest between the appellant and the CID officers.

Another important recent development is that dual vicarious liability is now possible in *Via system ltd V Thermal Transfer ltd*, *S&P Darwell ltd* and *CAT metallic work services* the claimant hired Thermal Transfer to install air conditioning in its factory,

Thermal Transfer subcontracted ducting work to Darwell which in turn hired fitters from CAT on a labor only basis. One of these fitters, through his negligence caused a flood damaging the claimant's property. Thermal transfer was liable to the claimant under its

contracts. The trial judge held that CAT was also liable as the fitter's employer. CAT appealed that Darwell should be considered the fitter's employer in the circumstances and the court of Appeal agreed and held both liable.

TORTS COMMITTED OUTSIDE THE COURSE OF EMPLOYMENT

This area can be potentially confusing because many cases where the employee has been found not to be liable appear to cover similar areas as those that do fall within the course of employment. Usually there is some extra element but it is still confusing. In general though an employer will not be held liable when the employee's acts fell outside of the scope of his own employment or where the employee was on a frolic of his own, there are a variety of circumstances in which the employer can be found not to be liable.

Where the employee engages in expressly prohibited acts that have nothing to do with his own work. In *Beard v London General Omnibus Co* a bus conductor drove the bus despite express orders to the contrary and injured the claimant. The employers were not vicariously liable. The conductor was not carrying out his own work but doing something outside the scope of his own employment.

Where the employee is on the "frolic of his own". An employer will not be liable for the acts that occur outside of the normal working day such as travelling into work. The same will apply where the employee does something outside of the scope of work. An employee who leaves work unofficially and goes off on an unauthorized escapade may be said to be on a frolic of his/her own in *Peter Ndula v A.G.* The plaintiff brought an action against the A.G of Uganda for personal injuries he had sustained when he was knocked down by the defendant's car. The defendant denied liability and pleaded that at the time of the accident, the driver was on a frolic of his own, he was not acting in the course of his employment. The driver was supposed to drive the Secretary General of OAU who had then gone to a National park when the

driver took away the car for his own purposes. It was held; the said police constable had set out on a frolic of his own

when the accident happened. The driver had no permission of his employer to take the car; therefore the A.G wasn't vicariously liable.

THE EMPLOYER'S INDEMNITY

Where the employer is vicariously liable both he and the employee are in effect joint tortfeasors. The consequence of this is that the claimant could actually sue either. One further consequence is that the employer who is sued may then sue the employee for an indemnity in *Lister V Romford Ice & cold storage ltd* a lorry driver knocked over his father who was at the time his driver's mate. The father claimed compensation from the employers. The employer's insurers on settling the claim then exercised their rights of subrogation under the insurance contract and sued the driver. The house of lord accepted that this position was possible.

However, this case has been strongly criticized not least because it destroys the purpose of imposing vicarious liability. As a result, insurers don't generally exercise their rights under the principle.

LIABILITY IN RESPECT OF AN INDEPENDENT CONTRACTOR

An employer is not normally liable merely because an independent contractor commits a tort in the course of his employment. He is liable only if he himself is deemed to have committed a tort. This may happen in one of the following ways;

1. Authorizing him to commit a tort, in many circumstances, the law will attribute to a man the conduct of another being whether human or animal, if he has instigated that conduct. He who instigates or procures another to commit a tort is deemed to have committed the tort himself. It matters not whether that other was an employee, an independent contractor or an agent. If a person commits a tort while purporting to act on behalf of another, but in fact does so without his authority, and that other later ratifies the act which amounts to a tort, he there by becomes answerable for the

tort in the same way as if he had authorized prior to its commission. However, to be liable on this basis, the

principle must know at the time of ratification of the commission of the act which constitutes a tort, this was made clear in *Freeman V Rosher*[33]

2. Negligence

An employer may be liable in Negligence for damages caused by the acts of his independent contractors in the following ways

□ Personal negligence on part of the employer. An employer is liable where he carelessly appoints an incompetent contractor. Equally, where the risk of harm is foreseeable in the absence of precautions, failure by the employer to provide to provide in the contract for those precautions, is actionable negligence. In *Robinson V Beaconsfield RDC* Ds employed contractors to clear out cesspools in their district. No arrangements were made for the removal of the deposits of sewage upon their being taken from the cesspools by the contractors. The contractors deposited sewage on C's land. Ds were held liable for their failure to take precautions to dispose of the sewage.

However there are circumstances where the employer is not liable for the acts of an independent contractor such as,

□ Collateral negligence

Employers of independent contractors are never liable for, as it is commonly termed, the "collateral negligence" of their contractors. It is a legal principle that an entity employing the services of an independent contractor is not liable for harm or injury caused by him or her if (1) *it results from the improper manner in which the independent contractor performed his or her duty*, (2) *it is inconsistent with the work he or she was employed to perform*, and (3) *the entity could not reasonably have anticipated it*.

4.0 JUSTIFICATION OF VICARIOUS LIABILITY

It is simply that the employer will normally have the deeper pockets and thus in a

better position to furnish any losses occasioned by the employee in the course of employment.

In addition, the prospect of vicarious liability may encourage employers to maintain high standards of conduct in the running of their business. There is also an argument that because the employer stands to make a profit from his employees working for him, it is only right that he should also bear the risk of potential liability arising from the work done.

5.0 CONCLUSION

Having discussed the various elements that constitute vicarious liability, elaborated on the justification, its right and expedient for an employer to be held jointly vicariously liable for the torts committed by his employee or any person he exercises control over or those acts committed during the course of employment.

WEEK 11: DAMAGES

Best of Luck:

PLEASE NOTE THAT SHOULD YOU COPY AND PASTE THESE NOTES TO YOUR COURSEWORK OR EXAM, YOU WILL BE DISCIPLINED FOR PLAGIARISM

Rebecca Gomes